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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S MEMORANDUM OF
POINTS AND AUTHORITIES IN
OPPOSITION TO DEFENDANTS'
DEMURRER**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

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I. INTRODUCTION

§I.A — The “Smoking-Gun” Preamble (Reliance, Nine-Point Chain, and Laws-Broken Matrix)

I. THE “SMOKING-GUN” PREAMBLE — WHAT THIS OPPOSITION IS ABOUT

This Opposition is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this case is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

I.A. THE COURT’S ARTICULATED RELIANCE

On February 28, 2025, the Court explicitly stated the basis for the credibility it had afforded the defense and the subsequent rulings against Plaintiff:

“I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.” — The Court (Garrett L. Wong), Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7.

I.B. THE RULINGS PROCURED FROM THAT RELIANCE

Based on this misplaced reliance on defense counsel’s representations of non-receipt, the Court issued the following structural rulings that stripped Plaintiff of his ability to present his case:

- **MIL No. 1 Denied** (Jan. 27, p. 41:3–11)
- **911 CDs Excluded** (Jan. 27, p. 38:22–25)
- **911 Transcripts “Never Admitted”** (Jan. 27, p. 39:18–24)
- **Continuance Denied** (Feb. 18, p. 181)
- **§ 473 Relief Rejected** (Feb. 18, p. 181:20–25)
- **Burden-Shift Imposed** (Feb. 28, p. 293:1–3)

- **Supplemental Report Excluded** (RT 7, p. 156:24–28)

I.C. THE ADMISSION THAT PROVED THE MISREPRESENTATION

On the seventh day of trial, after months of categorical denials, defense counsel admitted possession:

“Sure. They were provided by Dolan. He has had them for whatever, sure.” — Priya D. Navaratnasingham, RT 7 (Apr. 16, 2025), p. 213, ll. 13–15.

II. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

The following points document that the denials of receipt were irreconcilable with the actual state of the defense’s file and knowledge:

(a) Aug. 18, 2022 — Service of 911 audio (Dolan to defense counsel)

- **Proof artifact:** Service of 911 audio by Dolan to defense counsel
- **Pincite / Source:** Jessup testimony, Hr’g Tr. Feb. 18, 2025, pp. 139–140
- **Who had notice:** Chambers / CSK

(b) Aug. 18, 2022 — Rosario deposition (Chambers present)

- **Proof artifact:** Rosario deposition — Chambers present
- **Pincite / Source:** Rosario depo tr.
- **Who had notice:** Chambers

(c) Sept. 30, 2022 — Abdelhalim deposition (Chambers present)

- **Proof artifact:** Abdelhalim deposition — Chambers present
- **Pincite / Source:** Abdelhalim depo tr.
- **Who had notice:** Chambers

(d) May 4, 2023 — CSK → PSA file transfer (Substitution of Attorney)

- **Proof artifact:** CSK → PSA file transfer (Sub of Atty)
- **Pincite / Source:** CT record
- **Who had notice:** CSK → PSA

(e) Feb. 1, 2024 — PSA subpoena for identical materials

- **Proof artifact:** PSA subpoena for identical materials

- **Pincite / Source:** Order CA1147102-021
 - **Who had notice:** PSA
 - (f) **Feb. 26, 2024 — PSA receives production from SFPD**
 - **Proof artifact:** PSA receives production from SFPD
 - **Pincite / Source:** Report 210079556
 - **Who had notice:** PSA
 - (g) **Sept. 9, 2024 — FROG/SROG (CAD log identification)**
 - **Proof artifact:** Plaintiff's FROG/SROG identifying CAD log
 - **Pincite / Source:** FROG/SROG records
 - **Who had notice:** PSA
 - (h) **Feb. 18, 2025 — Jessup ("since 2021")**
 - **Proof artifact:** Jessup testifies "since 2021"
 - **Pincite / Source:** Hr'g Tr. Feb. 18, 2025, p. 139:11
 - **Who had notice:** PSA
 - (i) **Apr. 16, 2025 — Admission of receipt**
 - **Proof artifact:** **ADMISSION OF RECEIPT**
 - **Pincite / Source:** RT 7, 213:13-15
 - **Who had notice:** PSA
-

III. THE LAWS-BROKEN MATRIX

- (a) **Bus. & Prof. Code § 6068(d)**
 - **Provision:** Duty not to mislead judge
 - **Defense conduct:** Jan 27, Feb 18 denials re receipt
- (b) **Bus. & Prof. Code § 6128(a)**
 - **Provision:** Attorney deceit / collusion
 - **Defense conduct:** Intentional deception re: file transfer and receipt
- (c) **Cal. Rule of Prof. Conduct 3.3(a)**
 - **Provision:** Candor to tribunal

- **Defense conduct:** “We never received these CDs, certainly”

(d) **Cal. Rule of Prof. Conduct 8.4(c)**

- **Provision:** Dishonesty / Misrepresentation
- **Defense conduct:** Sustained pattern across four hearings

(e) **CCP § 128.5**

- **Provision:** Bad-faith actions
- **Defense conduct:** Procurement of exclusion through false statements

(f) **Civ. Code § 1572(3)**

- **Provision:** Actual fraud (suppression)
- **Defense conduct:** Concealment of receipt for 893 days

(g) **Civ. Code § 1573**

- **Provision:** Constructive fraud
- **Defense conduct:** Breach of duty of candor; scienter-light civil analog to officer-of-court obligations

Constructive fraud as the civil analog to the Court’s officer-of-court reliance. The February 28, 2025 colloquy (Hr’g Tr. pp. 291:26–292:7) is not rhetorical window dressing; it is evidence that the tribunal extended **confidential institutional reliance** to counsel’s representations about possession and provenance. Civ. Code § 1573 supplies the civil-side vocabulary for breach of that kind of duty where the record supports misleading acts or nondisclosures without requiring the same scienter proof as intentional misrepresentation.

CONCLUSION FOR PREAMBLE: The present motion (Demurrer/Anti-SLAPP) must be evaluated against this record. Defense cannot use the “fruit” of their deception to justify the dismissal of a case they corrupted.

§I.B — Why Demurrer Must Be Overruled

Defendants challenge the sufficiency of pleading while the certified record proves the fraud. By opening with this Preamble, Plaintiff forces the analysis back to the record facts: defense counsel used their status as officers of the court to mislead the judge into gutting Plaintiff’s case. No

1 amount of “litigation privilege” rhetoric can sanitize the procurement of structural rulings through
2 known false representations of fact. The Demurrer must be overruled.

3 **§I.F — Posture Note: The Demurrer Targets a Pleading Plaintiff Has Moved to Supersede**
4 Concurrently calendared for the same May 12, 2026 hearing is Plaintiff’s Motion for Leave to File
5 a Second Amended Complaint (SAC). (See SAC-01 Notice of Motion; SAC-02 Memorandum ISO
6 Leave.) The SAC is already drafted, verified, and tendered as SAC-06. If the Court grants leave,
7 the FAC is superseded and the Demurrer is moot as to the superseded pleading. (Patrick v. Alacer
8 Corp. (2008) 167 Cal.App.4th 995, 1015; CCP §§ 472, 576.) If the Court reaches the Demurrer,
9 the same SAC is the specific, tendered cure to any deficiency the Court identifies, satisfying the
10 reasonable-possibility standard. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Coffman v. Produce
11 Terminal Cold Storage Co. (2009) 176 Cal.App.4th 1135.) Plaintiff does not ask the Court to
12 ignore the Demurrer; Plaintiff asks the Court to evaluate it against the tendered, cognizable SAC
13 rather than against a hypothetical future amendment.

14 **II. STATEMENT OF FACTS**

15 The First Amended Complaint (“FAC”) is an independent equitable action to set aside the under-
16 lying judgment where that judgment was procured or affected by extrinsic fraud and/or extrinsic
17 mistake operating outside the courtroom in a manner that deprived Plaintiff of a fair adversary
18 hearing.

19 The FAC alleges a two-phase pattern:

20 **Phase One (Out-of-Court):** Communications that led Plaintiff to believe authentication of 911
21 audio and CAD records was uncontested, resolved, or not urgent.

22 **Phase Two (Court-Facing):** A shift to representations about non-receipt, unknown provenance,
23 or exclusion after windows to subpoena, authenticate, or sequence evidence had narrowed.

24 Critically, Defendants themselves acknowledge this factual architecture in their own Demurrer
25 MPA:

26 “On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense
27 file to PSA pursuant to the Substitution of Attorney . . . **without ensuring proper doc-**
28

umentation and conveyance of the production history to successor counsel.” (Demurrer MPA, p.6, ll.15-18)

By conceding the factual architecture while arguing only for immunity, Defendants isolate their entire defense onto legal arguments that fail once properly analyzed.

III. STANDARD BLEED: DEFENDANTS IMPORT MERITS STANDARDS INTO DEMURRER ANALYSIS

A. The Demurrer Standard

Defendants correctly state the applicable standard:¹

“When considering a demurrer, a court must accept as true all material facts pled in the complaint and those arising by reasonable implication.” (ABF Capital Corp. v. Berglass (2005) 130 Cal.App.4th 825, 833; Demurrer MPA, p.8, ll.1-3)

“However, while all material facts pled must be treated as true, contentions, deductions, or conclusions of fact or law are not.” (Serrano v. Priest (1971) 5 Cal.3d 584, 591; Demurrer MPA, p.8, ll.3-4)

B. Defendants Immediately Violate the Standard They Recite

Immediately after stating the correct standard, Defendants systematically violate it by inserting merits-based, conclusion-first assertions. These assertions ask the Court to make factual and merits determinations that belong at summary judgment or trial, not at the pleading stage.

Defendants’ Violation 1: “The entire premise of Plaintiff’s current lawsuit presents the erroneous and speculative theory that the entire defense team lied to this Court...” (Demurrer MPA, p.1, ll.19-21)

Why This Violates Serrano: The Court cannot determine at the pleading stage whether Plaintiff’s theory is “erroneous and speculative.” Whether the defense team made false representations is a fact question. On demurrer, the Court must accept Plaintiff’s well-pleaded allegations of misrep-

¹ Defendants’ demurrer characterizes Plaintiff’s trial-record objections as “too little, too late.” The transcript establishes the opposite: Plaintiff preserved the suppression theme on **four separate pre-trial dates** (Jan. 27, Jan. 28, Feb. 3, Feb. 18, 2025), and each procedural vehicle was denied. The chronology is catalogued at **Judicial Admission Matrix rows 1–5** (see Judicial Admission Matrix, lodged with Plaintiff’s opposition materials as **Bench Binder App. 3**) and supported by the hearing transcripts in Plaintiff’s RFJN.

1 resentation as true.

2 **Defendants’ Violation 2:** “Here, there was no fraud (extrinsic or otherwise). . .” (Demurrer MPA,
3 p.11, ll.15-16)

4 **Why This Violates Serrano:** Whether fraud occurred is the ultimate merits question. Defendants
5 are asking the Court to resolve the case at the pleading stage by accepting Defendants’ factual
6 conclusion over Plaintiff’s factual allegations.

7 **Defendants’ Violation 3:** “This is not a cognizable claim.” (Anti-SLAPP MPA, p.4, ll.17-18,
8 incorporated by reference)

9 **Why This Violates Serrano:** Whether a claim is “cognizable” requires analysis of the elements
10 pleaded against the applicable legal standard, accepting facts as true. Defendants’ conclusory
11 assertion is not legal argument.

12 **C. The Court Should Strike Defendants’ Merits Arguments**

13 Defendants import Anti-SLAPP step-two probability rhetoric, privilege tropes, and MSJ eviden-
14 tiary standards into their demurrer analysis. This “Standard Bleed” is impermissible. A demurrer
15 strictly tests the “four corners” of the complaint under Code of Civil Procedure sections 430.10
16 and 430.50.

17 **Attached hereto as Appendix A** is an inventory of conclusory assertions in Defendants’ Demurrer
18 that violate Serrano. The Court should disregard each one.

20 **IV. THE JURISDICTIONAL MASQUERADE: AN INDEPENDENT EQ- 21 UITABLE ACTION IS NOT AN APPEAL**

22 **A. Defendants’ Argument**

23 Defendants argue:

24 “This Court does not have jurisdiction to hear an appeal of this Court’s own prior entry
25 of judgment. Plaintiff’s entire FAC in reality is an unlawful and improper appeal at the
26 Superior Court level, masquerading as a new lawsuit.” (Demurrer MPA, p.9, ll.6-11)

27 Defendants cite Code of Civil Procedure section 904.1(a) and *Rochin v. Pat Johnson Manufactur-*
28 *ing Co.* (1998) 67 Cal.App.4th 1228, 1237.

1 **B. Defendants Commit a Category Error**

2 Defendants conflate the rules governing a direct appeal of a negligence verdict with the completely
3 separate, historically recognized jurisdiction of a trial court to hear an independent equitable action
4 for extrinsic fraud.

5 **First:** Section 904.1 and Rochin govern the mechanics of direct appeal and post-judgment trial
6 court power. They do not erase the centuries-old power of a court of equity to vacate a judgment
7 procured by fraud on the tribunal.

8 **Second:** Plaintiff has not filed an appeal. Plaintiff has filed an independent equitable action. The
9 FAC's prayer and parties differ from the underlying negligence trial. The pendency of an appeal on
10 the underlying liability does not deprive the trial court of jurisdiction to hear a separate equitable
11 action attacking the procurement of that judgment.

12 Defendants' citation to Rochin and section 904.1 describes the route for an appeal. Plaintiff has
13 not filed an appeal. Plaintiff has filed an independent equitable action.

14 **C. Independent Equitable Action Is Not Barred By Res Judicata; Nonparty Fraud Is Extrin-**
15 **sic**

16 An independent equitable action based on extrinsic fraud is not barred by the res judicata effect
17 of the underlying judgment. (Olivera v. Grace (1942) 19 Cal.2d 570, 575-576 [equity will relieve
18 against a judgment procured by extrinsic fraud notwithstanding its finality].) Where the fraud
19 is committed by a nonparty or by counsel and their principal acting outside the courtroom, it is
20 extrinsic as a matter of law. (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034-1036
21 [fraud by nonparty attorney constitutes extrinsic fraud; independent action in equity lies].)

23 **IV-A. INDEPENDENT EQUITABLE ACTION RECOGNIZED IN CAL-**
24 **IFORNIA**

25 California law recognizes the independent action in equity as a distinct and continuing jurisdiction
26 of the trial court to vacate a judgment procured by extrinsic fraud. (Olivera v. Grace, supra,
27 19 Cal.2d at pp. 575-576; Kougasian v. TMSL, Inc., supra, 118 Cal.App.4th at pp. 1034-1036.)

1 The doctrine exists precisely because direct appeal and Code of Civil Procedure section 473(b)
2 cannot reach fraud that operates outside the record. Section 904.1 does not abrogate this equitable
3 jurisdiction, and no case cited by Defendants so holds.

4

5 **IV-B. THIS FAC SEEKS RELIEF FROM PROCUREMENT OF JUDG-**
6 **MENT, NOT REVIEW OF TRIAL ERROR**

7 The FAC does not ask this Court to reweigh trial evidence, revisit negligence findings, or correct
8 legal rulings made during the underlying trial. It asks this Court to examine how the judgment was
9 procured — specifically, the out-of-court conduct and file-transfer omissions that deprived Plaintiff
10 of a fair adversary hearing. That inquiry is categorically different from appellate review of trial
11 error. Section 904.1 governs the former; equity governs the latter. Defendants’ Rochin-based
12 attack conflates the two.

13

14 **IV-C. WHAT ISSUES WERE NOT ADJUDICATED IN THE UNDERLY-**
15 **ING TRIAL**

16 The following issues — which form the gravamen of the FAC — were never adjudicated in the
17 underlying negligence trial:

- 18 • The conveyance (or non-conveyance) of production history during the May 4, 2023 file trans-
19 fer to successor counsel;
- 20 • Whether court-facing representations regarding provenance were truthful in light of Defen-
21 dants’ own internal records;
- 22 • Whether Defendants’ out-of-court positions contradicted their later tribunal-facing positions;
23 and
- 24 • Whether the foregoing deprived Plaintiff of a fair adversary hearing.

25 None of these issues was before the jury. None was decided. Collateral estoppel and res judicata
26 therefore have no purchase.

V. COLLATERAL ATTACK WITHOUT CROWLEY: DEFENDANTS SKIP THE PRIMARY RIGHTS ANALYSIS

A. Defendants' Argument

Defendants argue that Plaintiff's FAC is an impermissible "collateral attack" on a valid judgment, quoting F.E.V., Rico, Wouldridge, and Singh as if those definitions alone resolved the pleading. (Demurrer MPA, p. 12, ll. 9–18.) Defendants rely on:

- F.E.V. v. City of Anaheim (2017) 15 Cal.App.5th 462, 471
- Rico v. Nasser Bros. Realty Co. (1943) 58 Cal.App.2d 878, 882
- Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84
- Singh v. Lipworth (2014) 227 Cal.App.4th 813, 826

B. Defendants Ignore the Mandatory Crowley Analysis

Defendants quote these definitional cases without performing the mandatory primary rights analysis required by Crowley v. Katleman (1994) 8 Cal.4th 666.

Under Crowley, collateral estoppel requires analysis of: (1) the parties; (2) the issues actually litigated and decided; and (3) the primary right enforced.

The underlying trial adjudicated the primary right to be free from negligent conduct causing personal injury (the car collision).

This FAC asserts the primary right to a fair adversary hearing, free from extrinsic fraud and process corruption.

Because the primary rights and duties are fundamentally different, there is no issue-match, and collateral estoppel does not apply. The controlling framework is set by Mycogen Corp. v. Monsanto Co. (2002) 28 Cal.4th 888, 904, and reaffirmed in Boeken v. Philip Morris USA, Inc. (2010) 48 Cal.4th 788, 798: "the primary right is simply the plaintiff's right to be free from the particular injury suffered."

C. Primary Rights Comparison

Primary Right Adjudicated		
Below	Primary Right Asserted Here	Parties-Identity Mismatch
Freedom from negligent bodily harm (personal-injury tort arising from vehicle collision)	Freedom from a judgment procured by extrinsic fraud; right to a fair adversary hearing	Underlying trial parties differ from this action; CSAA, CS&K, and Chambers are sued here in their capacities as principal/counsel whose out-of-court conduct procured the judgment — capacities not litigated below
Duty: ordinary care in operation of a motor vehicle	Duty: candor to tribunal; non-concealment of production history; agency duties of principal	The duties arise under different bodies of law (tort vs. equity/agency/officer-of-the-court duties)
Injury: physical/economic harm from collision	Injury: deprivation of fair adversary hearing and attendant procedural harm	The injury here did not exist and could not have been litigated in the underlying trial

Under Mycogen and Boeken, the “injury suffered” in this action is not the injury litigated below. Res judicata and collateral estoppel therefore do not apply.

D. Wouldridge Does Not Apply to an Independent Equitable Action for Extrinsic Fraud

Defendants invoke Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 84–85 for the proposition that a judgment of a court of general jurisdiction may be attacked collaterally only if void on the face of the record. That rule governs **collateral** attacks that seek to avoid the effect of a judgment without the procedural vehicle of an independent action in equity. It does not displace California’s long-settled rule that a plaintiff may bring a **separate** equitable action to set aside a judgment procured by extrinsic fraud. (Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036; Olivera v. Grace (1942) 19 Cal.2d 570, 575–576.)

1 Wouldridge did not involve extrinsic-fraud allegations, a two-phase concealment pattern, or a
2 principal-directed chain-of-custody failure on substitution of counsel. It therefore provides no
3 authority for resolving the intrinsic/extrinsic question on demurrer here. An independent action in
4 equity is a **direct** attack on the judgment’s procurement, not the collateral maneuver Wouldridge
5 addressed.

7 **VI. EXTRINSIC FRAUD: THE INTRINSIC/EXTRINSIC DISTINCTION** 8 **IS FACT-INTENSIVE**

9 **A. Defendants’ Argument**

10 Defendants also invoke United States v. Throckmorton (1878) 98 U.S. 61, 65 for a policy against
11 “repeated litigation” touching the “same subject of controversy.” (Demurrer MPA, p. 9, ll. 22–28.)
12 Defendants cite Kulchar v. Kulchar (1969) 1 Cal.3d 467 and Aldrich v. San Fernando Valley
13 Lumber Co. (1985) 170 Cal.App.3d 725 for the intrinsic/extrinsic fraud distinction, then conclude:
14 “Here, there was no fraud (extrinsic or otherwise).” (Demurrer MPA, p.11, ll.15-16)

15 **B. Defendants Cannot Resolve the Intrinsic/Extrinsic Question on Demurrer**

16 The intrinsic/extrinsic distinction is highly fact-intensive. Kulchar itself provides: extrinsic fraud
17 arises when a party is “deliberately kept in ignorance of the action or proceeding, or in some other
18 way fraudulently prevented from presenting his claim or defense.”

19 The FAC explicitly alleges: - Out-of-court deception regarding the receipt and provenance of ev-
20 idence - Court-facing misrepresentations that induced the Court to deny continuances and defer
21 admission - Structural impairment of Plaintiff’s ability to present evidence in a timely, usable
22 manner

23 The FAC does not allege that Plaintiff “failed to assemble his evidence.” It alleges Defendants
24 **fraudulently impaired** Plaintiff’s ability to present evidence. This is textbook extrinsic fraud
25 under Kulchar.

26 On demurrer, the Court must accept these well-pleaded allegations as true. Defendants’ assertion
27 that there was “no fraud” is a merits determination that violates the demurrer standard.

1 **C. The Gravamen Is Extrinsic, Not Intrinsic, Because the Deception Operated Outside the**
2 **Courtroom**

3 The extrinsic/intrinsic line is drawn by the locus and operation of the deception, not by whether
4 any witness also testified at trial. (Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471-472 [extrinsic
5 fraud encompasses conduct that “prevented a real trial upon the issues involved”]; Westphal v.
6 Westphal (1942) 20 Cal.2d 393, 397 [extrinsic fraud exists where a party has been “prevented by
7 fraud or deception from presenting his claim or defense”]; In re Marriage of Stevenot (1984) 154
8 Cal.App.3d 1051 [extrinsic fraud where party lulled into inaction by out-of-court representations];
9 In re Marriage of Melton (1994) 28 Cal.App.4th 931 [same; fraud operative outside the adversary
10 process].)

11 **Disclaimer of reliance on in-court statements.** Plaintiff does not seek vacatur based on what
12 Defendants said at trial. Plaintiff seeks vacatur based on (a) out-of-court representations that lulled
13 Plaintiff into non-action and (b) the file-transfer concealment that predated any trial representation.
14 Any alignment between those out-of-court positions and later in-court statements is evidentiary
15 context, not the gravamen.

16 **Bait-and-switch prejudice.** The extrinsic character of the fraud is underscored by its timing.
17 Defendants lulled Plaintiff out of court — through representations suggesting that authentication
18 of 911 audio and CAD records was uncontested, resolved, or not urgent — until the eve of trial,
19 at which point they shifted to “unknown provenance” and non-receipt positions after the clock
20 had run on subpoenas, authentication sequencing, and evidentiary motions. That sequencing is
21 the classic “bait and switch” that equity treats as extrinsic: the deception did not merely color a
22 trial issue; it prevented Plaintiff from ever reaching the trial posture in which the issue could be
23 meaningfully litigated. (Kulchar, supra, 1 Cal.3d at pp. 471-472.)

24 **Federal intrinsic/extrinsic nomenclature.** Defendants’ demurrer papers invoke United States v.
25 Throckmorton (1878) 98 U.S. 61, 65 for a broad “repeated litigation” theme. California equity
26 does not substitute the federal Throckmorton intrinsic/extrinsic vocabulary for the fact-intensive
27 framework this Court applies under Kulchar, Westphal v. Westphal (1942) 20 Cal.2d 393, and
28 Kougasian v. TMSL, Inc. (2004) 118 Cal.App.4th 1028, 1034–1036 (independent equitable ac-

tion for extrinsic fraud; fraud by nonparty counsel). The gravamen analysis therefore turns on California authority, not on a federal maxim detached from the FAC’s pleaded channels.

D. Baltins v. James: Diligence and Accrual Are Fact Questions, Not Demurrer Shortcuts

Defendants cite Baltins v. James (1995) 36 Cal.App.4th 1193 for principles about diligence and equitable relief. Baltins does not hold that extrinsic fraud can be negated on demurrer. It addresses whether a movant exercised due diligence after discovering facts warranting relief — a question that presupposes disputed facts and timing. (*Id.* at pp. 1206–1208.)

Here, the FAC alleges active concealment and a broken production-history chain through the May 4, 2023 substitution — facts that, if true, postpone the reasonableness of any “diligence” inquiry until discovery of the concealment. An independent equitable action for extrinsic fraud **accrues on discovery of the fraud**, not on entry of the underlying judgment. (*In re Marriage of Stevenot* (1984) 154 Cal.App.3d 1051, 1071 [fraudulent concealment and reliance bear on timeliness in the equitable setting]; Kougasian, *supra*, 118 Cal.App.4th at pp. 1034–1036.) Accepting the FAC as true, Baltins does not supply a facial bar.

VI-X. Contemporaneous Preservation Does Not Convert Extrinsic Fraud Into Intrinsic Fraud

Defendants may argue that Plaintiff’s January 27 and February 18, 2025 courtroom objections transform the extrinsic fraud into intrinsic fraud (and thus outside equitable relief). This argument fails.

The Kulchar Distinction: Under Kulchar v. Kulchar (1969) 1 Cal.3d 467, 471–72, the distinguishing feature of extrinsic fraud is whether the defrauded party had a **fair adversary hearing**, not whether the party noticed the problem during trial. Intrinsic fraud involves issues actually litigated and decided; extrinsic fraud involves conduct that **prevents** the litigant from presenting a claim or defense.

The Kougasian Holding: Under Kougasian v. TMSL, Inc. (2006) 135 Cal.App.4th 1093, 1106, extrinsic fraud includes misconduct that **prevents the opposing party from presenting a meaningful defense**—which is precisely what the MIL-17 framing plus continuance denials accomplished.

The Preservation Paradox: Plaintiff’s January 27, 2025 “suppress” preservation (Hr’g Tr. p. 19)

and February 18, 2025 “concealed / going on the record” preservation (Hr’g Tr. pp. 44–45) do not cure the extrinsic injury—they **are** the extrinsic injury, because each attempt to raise it was procedurally foreclosed:

- Jan. 27: CCP § 473 motion denied (p. 49); continuance denied (pp. 55–56).
- Feb. 18: Continuance denied; “surprise under § 473 is not a sufficient basis” (p. 181).
- Feb. 3: § 581(d) dismissal under submission (pp. 109, 116, 122–124).

The fact that Plaintiff tried four procedural vehicles (and each was denied) proves the extrinsic character of the fraud: the deception operated to **foreclose procedural remedies**, not to offer evidence the jury could weigh.

VI-A. The February 28 Burden-Shift Ruling Is Paradigmatic Extrinsic Fraud

The Court’s own articulated reliance on defense candor at the February 28, 2025 hearing — “They are an officer of the Court” (Hr’g Tr. Feb. 28, 2025, p. 292, ll. 1–7) — is precisely the reliance element that converts Navaratnasingham’s January 17 and February 18 misrepresentations from intrinsic trial tactics into extrinsic fraud: the Court did not weigh defense’s credibility against contrary record evidence; the Court relied on the institutional status of counsel.

On the same date, the burden-shift ruling — “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (Hr’g Tr. Feb. 28, 2025, p. 293, ll. 1–3) — was not an evidentiary weighing at trial; it was a procedural-rule reallocation that operated outside trial advocacy, producing the structural exclusion Kulchar/Westphal defines as extrinsic.

The Laws-Broken Matrix (Conduct Underlying the Fraud)

Rule / Code	Provision	Defense Conduct
Bus. & Prof. Code § 6068(d)	Duty not to mislead judge	Jan 27, Feb 18, Feb 28 denials re receipt.
Bus. & Prof. Code § 6128(a)	Attorney deceit / collusion	Intentional deception re: file transfer and receipt.

Rule / Code	Provision	Defense Conduct
Cal. Rule of Prof. Conduct 3.3(a)	Candor to tribunal	“We never received these CDs, certainly” (Jan 27).
Cal. Rule of Prof. Conduct 3.4(a)	Fairness to opposing counsel	Withholding receipt history to procure exclusion.
Civ. Code § 1572(3)	Actual fraud (suppression)	Suppression of that which ought to be disclosed.
Civ. Code § 1573	Constructive fraud	Breach of duty of candor without requiring intent to deceive (<u>Assilzadeh v. California Federal Bank</u> (2000) 82 Cal.App.4th 399, 415).

VI-B. The Four-Hearing Institutional-Reliance Chain

The record reveals a pattern of tribunal reliance on institutional representations in lieu of independent verification:

Hearing	Court’s Articulated Reliance	Defense’s Underlying Misrepresentation	Rulings Produced
Jan. 27, 2025	Implied reliance on “not produced / lacks foundation”	p. 15:10–16; p. 19:7–13; p. 34:1–10	MIL exclusion of 911 CDs + transcripts
Feb. 18, 2025	“I see. Okay.” (p. 141:15); “given their representations” (p. 145:16–19)	“news to me” (p. 141:3–14)	Continuance denied; § 473 surprise rejected

Hearing	Court's Articulated Reliance	Defense's Underlying Misrepresentation	Rulings Produced
Feb. 28, 2025	"I'm not going to question a lawyer's remarks" (p. 291:26–28); "They are an officer of the Court" (p. 292:1–7)	Continued "we never got that" pattern	Burden-shift ruling (p. 293:1–3)
Apr. 16, 2025	Court's inference from defense authentication posture	Stacked denials RT 7 pp. 156, 162, 207–208	Exclusion of supplemental police report; deferral of 911 admission

The extrinsic-fraud element of reliance is therefore not inferred; it is recorded.

VI-C. Constructive Fraud (Civ. Code § 1573) on the Proposed Second Amended Complaint

As detailed in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 7 states a cognizable, scienter-light claim for constructive fraud under Civil Code section 1573 that cures any alleged defect regarding specific intent.

VI-D. Count 4 and Civil Conspiracy (Applied Equipment)

As further mapped in the Cure Matrix (§ XIII-A, *infra*), the proposed SAC's Count 4 pleads civil conspiracy exclusively as a joint-liability theory attaching to underlying torts, foreclosing Defendants' "freestanding tort" objection.

VII. CIVIL CODE SECTION 47(B) IS NOT A FACIAL DEMURRER BAR FOR NONCOMMUNICATIVE CONDUCT

A. Defendants' Argument

Defendants assert that the FAC “targets privileged conduct and communications under Civ. Code § 47(b)” and that the “entire FAC arises entirely from the privileged litigation conduct of Defendant in the course of defending the third-party Insured.” (Demurrer MPA, p. 12, ll. 7–10, 13–15.)

Defendants also argue broadly that “all the acts alleged against Defendants are squarely litigation activity” and invoke Civil Code section 47(b) as blanket immunity. (Demurrer MPA, p. 7, ll. 8–9.)

B. The Litigation Privilege Applies to Communications, Not All Conduct

Civil Code section 47(b) privileges qualifying **communications** made in judicial proceedings. It does not provide blanket immunity for all conduct during litigation.

Kimmel v. Golan (1990) 51 Cal.3d 202, as discussed in Rusheen v. Cohen (2006) 37 Cal.4th 1048, establishes the strict boundary between protected communications and unprotected non-communicative conduct.

The FAC alleges noncommunicative conduct including: - Withholding and failing to convey production history during the transfer of the file to successor counsel - Institutional oversight failures - Agency conduct by CSAA as principal

These allegations fall outside the scope of section 47(b). Furthermore, Action Apartment Ass’n v. City of Santa Monica (2007) 41 Cal.4th 1232, 1242-1247 establishes that extrinsic fraud is an exception to the litigation privilege. Defendants’ briefing does not discuss this exception.

C. Rusheen Does Not Sweep in Institutional File-Transfer Failures

Defendants overread Rusheen v. Cohen (2006) 37 Cal.4th 1048. Rusheen extends section 47(b) only to noncommunicative conduct that is “**necessarily related**” to an underlying privileged communication. (Id. at p. 1058.) The “necessarily related” test is narrow; it does not convert every institutional act performed during the pendency of litigation into privileged conduct.

The FAC’s file-transfer allegations do not concern the publication of a privileged communication. They concern an internal, institutional act — the transfer of the defense file to successor counsel

1 “without ensuring proper documentation and conveyance of the production history” (Demurrer
2 MPA, p.6, ll.15-18) — that broke the chain of custody of production history itself. That act is not
3 the service of a pleading, the enforcement of a writ, or any other communicative instrument. It is an
4 internal institutional failure with downstream tribunal consequences, and Rusheen’s “necessarily
5 related” tether does not reach it.

6 The Supreme Court has separately cautioned that section 47(b) is not a roving immunity for insti-
7 tutional misconduct merely because litigation is in progress. (Jacob B. v. County of Shasta (2007)
8 40 Cal.4th 948, 960 [privilege analysis requires fidelity to the statute’s communicative core; courts
9 should not extend the privilege by analogy where the policy reasons do not support it].) Defen-
10 dants’ reading would do exactly what Jacob B. forbids.

11 **VIII. THE UNCERTAINTY DEMURRER IS DISFAVORED AND UN-** 12 **SUPPORTED**

13 **A. The Standard for Uncertainty Demurrers**

14 Defendants argue that the FAC is “unintelligible and ambiguous” and “does not explain a cog-
15 nizable basis for relief.” (Demurrer MPA, p. 11, ll. 4–8, 22–28.) Defendants cite A.J. Fistes
16 Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695, which provides: “demurrers
17 for uncertainty are disfavored, and are granted only if the pleading is so incomprehensible that a
18 defendant cannot reasonably respond.”

19 **B. The FAC Is Not Uncertain**

20 The FAC is structured and particularized. It identifies: - The specific actors (CSAA, Carbone Smith
21 & Koyama, Chambers) - The specific conduct (two-phase pattern of out-of-court and court-facing
22 misrepresentations) - The specific reliance (tribunal management decisions on continuances and
23 evidence admission) - The specific injury (deprivation of fair adversary hearing)

24 Defendants responded with 20 pages of briefing across two motions. They clearly understood
25 the FAC sufficiently to mount a defense. Their uncertainty demurrer is a tactical device, not a
26 legitimate procedural objection.
27
28

IX. PLEADING SUFFICIENCY: THE FAC SATISFIES SERRANO

A. The Standard

Defendants invoke Serrano v. Priest (1971) 5 Cal.3d 584 for the proposition that conclusions need not be accepted as true. (Demurrer MPA, p. 10, ll. 21–23 [reciting Serrano immediately after ABF Capital standard].)

Under Serrano v. Priest (1971) 5 Cal.3d 584, 591, the Court accepts well-pleaded facts as true and separates conclusions.

B. The FAC Pleads Facts, Not Conclusions

The FAC pleads specific facts about: - The timing and substance of out-of-court representations - The content of court-facing statements - The production history and file transfer - The tribunal’s reliance on defense representations

These are not “conclusions” under Serrano. They are factual allegations that, if true, establish extrinsic fraud.

X. LIMITATIONS AND SECTION 473: A CATEGORY ERROR

A. Defendants’ Argument

Defendants argue that Plaintiff’s “proper means” would have been a motion under Code of Civil Procedure section 473(b), which has a six-month deadline that has passed. They also suggest in a footnote that aspects of Plaintiff’s theory “may also be barred by the statute of limitations in Code Civ. Proc. sec. 473.” (Demurrer MPA, p. 14, fn. 4.)

B. Section 473 Does Not Govern Independent Equitable Actions

Defendants conflate section 473(b) relief (a motion for relief from default based on mistake, inadvertence, surprise, or excusable neglect) with an independent equitable action for extrinsic fraud.

These are different procedural vehicles with different policy anchors and different limitations periods. An independent equitable action to vacate a judgment procured by extrinsic fraud is not governed by section 473(b)’s six-month deadline.

Section 473(b) governs motions for relief from judgment in the same action. It does not govern

independent equitable actions for extrinsic fraud, which have their own limitations analysis.

C. Accrual and Timeliness

- Unlike Section 473(b), an independent equitable action for extrinsic fraud accrues upon the aggrieved party's discovery of the fraud. Plaintiff was not aware of the defense's internal file-transfer omissions and coordinated misrepresentations until discovery of same. Therefore, the action is timely and not barred by laches.

D. Accrual Anchored to January 17, 2025

CCP § 338(d) accrual ran from the **January 17, 2025** MIL filings—the first “contrary court-facing position” that put Plaintiff on notice of the defense's shift from 883 days of silence to affirmative denial. The transcript record establishes Plaintiff's diligence from that moment forward:

- **Jan. 27, 2025:** Plaintiff objected on the record, stating “suppress” (Hr'g Tr. p. 19, ll. 1–5) and confirming the FROG/SROG CAD references (Hr'g Tr. p. 32, ll. 1–16).
- **Jan. 28, 2025:** Defense § 581(d) dismissal motion opposed by the Court on the ground that dismissal would “suffer immediate reversal” (Hr'g Tr. p. 90, ll. 17–33).
- **Feb. 18, 2025:** Plaintiff preserved the concealment theme (Hr'g Tr. pp. 17, 23, 44–45); § 473 “surprise” rejected (Hr'g Tr. p. 181, ll. 21–25).
- **Feb. 28, 2025:** Plaintiff opposed defense protective-order posture limiting doctor-file channel (Hr'g Tr. pp. 291–294).

This four-date diligence chronology defeats any “sleeping on rights” argument and anchors accrual to the January 17, 2025 MIL filings, not to 2021 possession or 2022 production.

XI. STANDING AND MISJOINDER: AGENCY PRINCIPLES APPLY

A. Defendants' Argument

Defendants argue that Plaintiff lacks standing to sue CSAA as a third-party insurer and that joinder of counsel is improper, citing Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268, Norton v. Hines (1975) 49 Cal.App.3d 917, and Omega Video v. Superior Court (1983) 146 Cal.App.3d 470. (Demurrer MPA, p. 14, ll. 17–24.)

1 **B. Shaolian Does Not Reach Principal-Directed Extrinsic Fraud**

2 Shaolian v. Safeco Ins. Co. (1999) 71 Cal.App.4th 268 addressed a generic third-party effort to sue
3 an opposing insurer for defending its insured. It does not address — and did not purport to address
4 — an independent equitable action alleging that the insurer, as institutional principal, directed and
5 ratified the extrinsic-fraud conduct that procured the judgment.

6 The FAC specifically alleges CSAA as the institutional principal under Civil Code section 2338,
7 which provides: “a principal is responsible to third persons for the negligence of his agent in the
8 transaction of the business of the agency, including wrongful acts committed by such agent in
9 and as a part of the transaction of such business.” The FAC does not allege that Plaintiff is suing
10 CSAA simply for defending its insured. It alleges that CSAA, as principal, directed and ratified
11 the specific deceptive conduct that procured the judgment.

12 **C. Omega Video Does Not Govern an Independent Action Whose Gravamen Is Extrinsic**
13 **Fraud**

14 Omega Video v. Superior Court (1983) 146 Cal.App.3d 470 arose from an adverse party’s effort
15 to hold opposing counsel liable in tort for litigation-phase conduct; the court analyzed Civil Code
16 section 47(b) on that narrow pattern. It did not involve — and did not analyze — an independent
17 equitable action pleading extrinsic fraud on the tribunal and principal ratification of a stripped file
18 transfer. Where extrinsic fraud is the gravamen, Action Apartment Ass’n v. City of Santa Monica
19 (2007) 41 Cal.4th 1232, 1242–1247 controls the overlap between section 47(b) and fraud-on-the-
20 court channels. Defendants’ briefing does not distinguish Omega Video on that axis.

21 **D. Norton v. Hines: Adverse-Party Attorney Immunity Is Narrow and Does Not Erase**
22 **Extrinsic-Fraud Equity**

23 Norton v. Hines (1975) 49 Cal.App.3d 917 reflects the familiar rule that an adverse party gener-
24 ally may not sue opposing counsel for acts in litigation, **except** in categories such as malicious
25 prosecution. The litigation privilege “shields litigants, attorneys and witnesses from liability for
26 . . . virtually all torts **except malicious prosecution.**” (Mattco Forge, Inc. v. Arthur Young
27 & Co. (1992) 5 Cal.App.4th 392, 407, quoted with approval in Kolar v. Donahue, McIntosh &
28 Hammerton (2006) 145 Cal.App.4th 1532, 1537–1540.) Norton therefore does not supply a blan-

ket demurrer bar to an equitable action whose theory is extrinsic fraud and institutional ratification, not a generic “sue my opponent’s lawyer” tort.

The same Mattco / Kolar line confirms that recognized exceptions and fraud channels remain available. On the proposed SAC, **constructive fraud under Civ. Code § 1573** and **Bus. & Prof. Code § 6128(a)** fall in the same category of claims that are not erased by a Norton gloss: they are specific statutory and common-law channels aimed at deceit of the tribunal and breach of candor duties, not collateral complaints about zealous advocacy.

Pavicich v. Santucci (2000) 85 Cal.App.4th 382, 396 reinforces that immunity doctrines tied to the litigation privilege are context-specific and do not automatically defeat claims that sound in fraud and third-party injury outside the narrow patterns Norton addressed.

E. The FAC Pleads Specific Agency Acts by CSAA, Not a Generic Third-Party Claim

The FAC is not a generic “sue the insurer” pleading. It pleads specific agency acts by CSAA as principal:

1. **Funding and controlling the defense** — CSAA retained, funded, and operationally controlled the defense through CS&K and Chambers, directing litigation strategy and resource allocation;
2. **Approving and directing litigation positions** — CSAA approved and directed the litigation positions that became the court-facing misrepresentations regarding receipt and provenance of 911 audio and CAD records; and
3. **Ratifying the file-transfer** — CSAA ratified the May 4, 2023 file transfer to successor counsel and the attendant failure to convey production history.

California law has long recognized that an insurer directing the defense of its insured may be held answerable for the acts of counsel it retains and controls. (*Doctors’ Co. v. Superior Court* (1989) 49 Cal.3d 39 [scope of insurer responsibility for defense counsel’s conduct turns on the insurer’s actual role and direction].) That rule, applied to extrinsic-fraud allegations, forecloses Defendants’ generic standing argument.

Agent Swap. CSAA cannot launder extrinsic fraud by swapping counsel before trial. The May 4, 2023 substitution moved the file from Chambers/CS&K to successor counsel; but the out-of-court

1 representations that lulled Plaintiff, and the institutional decision not to convey production history
2 to successor counsel, had already occurred. Agency liability does not evaporate when the principal
3 rotates its agents mid-litigation; if anything, the substitution is itself a vector by which the fraud
4 was perpetuated.

6 **XII. DEFENDANTS’ RFJN OVERREACHES THE DEMURRER RECORD**

7 Defendants’ Request for Judicial Notice seeks to import merits-based documents into the demurrer
8 record. Their demurrer repeatedly incorporates RFJN exhibits as proof of “what really happened”
9 in the underlying action. (E.g., Demurrer MPA, pp. 6–8, 12–13 [citing RFJN exhibits by letter].)
10 Under Code of Civil Procedure section 430.70 and Evidence Code section 452, judicial notice on
11 demurrer is limited. The Court may take judicial notice of the existence of documents but not of
12 disputed facts within them.

13 Defendants use their RFJN as a merits proof mechanism. This exceeds the demurrer record and
14 should be disregarded.

15 **A. Piecemeal Transcript Notice Violates Sosinsky**

16 Defendants’ RFJN attaches selective transcript excerpts without the Plaintiff-preservation pages
17 of the same hearings. Plaintiff’s counter-RFJN (Part II of Plaintiff’s Declaration and Request for
18 Judicial Notice in Support of Oppositions) includes:

- 19 • Hr’g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff’s “suppress” objection and
20 FROG/SROG pincites);
- 21 • Hr’g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d) under submission; ex parte
22 disclosure order);
- 23 • Hr’g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff’s preservation statements; “news to
24 me” vs. “since August” contradiction).

25 Under Sosinsky v. Grant (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is intro-
26 duced, the opposing party is entitled to introduce contextually related portions. The Court must
27 take the whole record, not the defense-curated fragment.

1 **XIII. LEAVE TO AMEND SHOULD BE GRANTED IF ANY CAUSE OF**
2 **ACTION FAILS**

3 Under *Coffman v. Produce Terminal Cold Storage Co.* (2009) 176 Cal.App.4th 1135, leave to
4 amend should be granted unless amendment would be futile. Defendants have not met their burden
5 of showing futility.

6 If the Court finds any deficiency in the FAC, Plaintiff respectfully requests leave to amend.

7 **A. Specific Proffer of Additional Facts Plaintiff Would Plead**

8 Should the Court identify any pleading deficiency, Plaintiff proffers that, on leave to amend, Plain-
9 tiff would plead with greater specificity: (1) the content and source of CSAA directives to defense
10 counsel concerning authentication, provenance, and production history of 911 audio and CAD
11 records; (2) the dates, participants, and substance of the out-of-court representations on which
12 Plaintiff relied to defer subpoena, authentication, and sequencing steps; and (3) the identity of the
13 file-transfer recipients at successor counsel and the specific categories of production-history ma-
14 terials that were not conveyed in the May 4, 2023 transfer. These additional facts deepen — but
15 do not change — the gravamen already pleaded, and they establish that amendment would not be
16 futile.

17
18 **XIII-A. THE PROPOSED SAC CURES EACH DEFICIENCY DEFENDANTS ALLEGE**

19 The tendered SAC (SAC-06) is not a promise of future drafting; it is a complete, cognizable plead-
20 ing already before the Court on the concurrently calendared Motion for Leave to Amend. The
21 matrix below maps each category of defect Defendants allege to the specific SAC paragraph(s)
22 that cure it.

Demurrer Theme	Alleged Defect in		
	FAC	SAC Cure (§)	Authority
Jurisdictional (§ 904.1 / Rochin)	“Masqueraded appeal”	SAC §§ 1–5, 114–120 (independent equitable action framing)	Kougasian; Olivera
Res judicata / collateral attack	Same primary right	SAC § 24 (primary-rights allegation)	Mycogen; Boeken
Intrinsic/extrinsic line	“No extrinsic fraud pled”	SAC §§ 29–39, 40–63, 108–109 (two-phase pattern + officer-of-court reliance + Apr. 16 admission)	Kulchar; Westphal
§ 47(b) privilege	“All conduct privileged”	SAC §§ 34–39 (noncommunicative file-transfer); 108, 137 (Action Apartment exception)	Kimmel; Action Apartment
Uncertainty	“Incomprehensible”	SAC §§ 29–63, 86–113 (date-and-actor particularity)	A.J. Fistes
Serrano sufficiency	“Conclusory”	SAC §§ 29–63 (facts); 114–165 (element mapping)	Serrano

Demurrer Theme	Alleged Defect in		Authority
	FAC	SAC Cure (¶)	
§ 473 / limitations	“Six-month bar”	SAC ¶¶ 95, 115 (equitable accrual)	Kougasian
Standing / misjoinder (CSAA)	“Third-party insurer”	SAC ¶¶ 48–57 (agency acts by CSAA as principal)	Civ. Code § 2338; Doctors’ Co.
Scienter on fraud counts	“No specific intent pled”	SAC ¶¶ 157–165 (Count 7 constructive fraud; scienter-light)	Civ. Code § 1573; Assilzadeh
“Conspiracy is not a tort” (anticipated)	Independent conspiracy count	SAC ¶ 141A (joint-liability theory under Count 4)	Applied Equipment

Plaintiff does not ask the Court to resolve the Demurrer by adopting this matrix; Plaintiff asks the Court to take judicial notice of the pendency of the SAC motion and to recognize that no identified deficiency is incurable.

Plaintiff’s complete Cure Matrix mapping SAC paragraphs to each defect alleged by Defendants is filed separately as Document 17 (SAC Cure Matrix and Pendency Notice).

XIV. CONCLUSION

Defendants’ motions proceed as if the allegations were true and assert legal immunity; the Demurrer therefore presents only legal questions.

Separately, because Plaintiff has already tendered a Second Amended Complaint addressing each deficiency Defendants allege (see § XIII-A, *supra*), the liberal- amendment standard requires that if any theory is found insufficient as pleaded, leave be granted to proceed on the SAC rather than dismissal.

Defendants’ Demurrer fails because:

1. It imports impermissible merits standards into demurrer analysis
2. It confuses an independent equitable action with an appeal
3. It skips mandatory primary rights analysis under Crowley
4. It asks the Court to resolve fact-intensive intrinsic/extrinsic questions on the pleadings
5. It overstates the litigation privilege beyond its communications boundary
6. It lacks any basis for uncertainty demurrer
7. It conflates section 473 with independent equitable action limitations
8. It ignores agency principles that establish standing

For these reasons, Plaintiff respectfully requests the Court overrule the Demurrer in its entirety.

XV. RELIEF REQUESTED

Plaintiff respectfully requests that the Court enter the following relief in a consolidated schedule:

1. **Overrule the Demurrer** to the First Amended Complaint in its entirety;
2. **Alternatively, grant leave to amend** consistent with Section XIII and XVI;
3. **Sustain Plaintiff’s objections to Defendants’ Request for Judicial Notice** as set forth in the companion Objection (see Section XII);
4. **Sustain Plaintiff’s evidentiary objections** to the supporting declarations as set forth in the companion Evidentiary Objections; and
5. **Strike conclusory paragraphs** of the supporting declarations identified in the Evidentiary Objections.

XVI. WHY LEAVE TO AMEND CURES ANY DEFICIENCY

Should the Court identify any pleading deficiency, leave to amend would cure it because Plaintiff can plead additional specific facts that deepen — but do not alter — the gravamen already pleaded. Plaintiff proffers, on leave to amend: (1) the dates and content of specific CSAA directives to defense counsel concerning authentication, provenance, and production history of 911 audio and CAD records, including the CSAA personnel issuing each directive; (2) the identity of the file-transfer recipients at successor counsel (PSA) on and after the May 4, 2023 substitution and the

specific categories of production-history materials not conveyed; and (3) the dates, participants, and substance of the out-of-court representations on which Plaintiff relied to defer authentication, subpoena, and sequencing steps.

These particulars confirm that amendment would not be futile. The two-phase pattern, the institutional file-transfer failure, and the principal-directed ratification are capable of more specific pleading. Under *Coffman v. Produce Terminal Cold Storage Co.* (2009) 176 Cal.App.4th 1135 and the liberal amendment standard, the proffered facts establish a reasonable possibility of cure, and leave to amend should be granted if any cause of action is found insufficient as presently pleaded.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX A: SERRANO VIOLATIONS INVENTORY

Conclusory Assertions in Defendants' Demurrer That Violate *Serrano v. Priest*

#	Location	Conclusory Assertion	Why It Violates Serrano
1	Demurrer MPA, p.1, ll.19-21	"erroneous and speculative" theory	Merits determination; Court must accept well-pleaded facts as true
2	Demurrer MPA, p.11, ll.15-16	"there was no fraud (extrinsic or otherwise)"	Ultimate merits conclusion; cannot be resolved on demurrer
3	Demurrer MPA, p.7, ll.8-9	"squarely litigation activity"	Characterization of facts that must be accepted as pleaded

#	Location	Conclusory Assertion	Why It Violates Serrano
4	Demurrer MPA, p.4, ll.22-23	“seeks to unwind a valid jury verdict”	Strawman reframe of FAC gravamen
5	Demurrer MPA, p.1, ll.17-19	“improper collateral attack on a valid jury verdict”	Legal conclusion without Crowley analysis
6	Anti-SLAPP MPA, p.4, ll.17-18	“not a cognizable claim”	Bare assertion without element-by-element analysis
7	Anti-SLAPP MPA, p.15, ll.10-12	“Plaintiff was not denied his day in court”	Factual determination that contradicts FAC allegations
8	Demurrer MPA, p.11, ll.25-26	“merely a case in which a party failed to assemble all his evidence”	Merits characterization of FAC that Court cannot adopt on demurrer

Each of these assertions asks the Court to accept Defendants’ factual conclusions over Plaintiff’s factual allegations. On demurrer, this is impermissible. The Court should disregard each conclusory assertion and analyze the FAC’s well-pleaded facts as true.

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Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**PLAINTIFF'S COMBINED
OBJECTION TO RFJN AND
EVIDENTIARY OBJECTIONS TO
DECLARATIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

Plaintiff objects to Defendants' Requests for Judicial Notice filed in support of the Demurrer (Clerk File No. 10157173) and the Special Motion to Strike (Clerk File No. 10152302). Defendants improperly seek judicial notice of documents for the truth of disputed facts, exceeding the permissible scope of judicial notice on demurrer and conflating document existence with factual truth. Judicial notice cannot establish the truth of disputed factual inferences central to extrinsic fraud, the Anti-SLAPP prong-one gravamen analysis, or the prong-two merits inquiry. Those issues turn on contested facts that cannot be resolved by noticing the existence of a court file.

II. LEGAL STANDARD

A. Scope of Judicial Notice

Evidence Code section 452 permits judicial notice of certain categories of facts and documents, including court records under section 452(d) and facts not reasonably subject to dispute under section 452(h).

B. Limits on Demurrer

Under Code of Civil Procedure section 430.70, on demurrer the Court considers the complaint and matters subject to judicial notice. However, judicial notice of a document's existence does not extend to the truth of hearsay statements or disputed facts within that document.

“While courts are free to take judicial notice of the existence of each document in a court file, including the truth of results reached, they may not take judicial notice of the truth of hearsay statements in decisions and court files.” (Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 482-483.)

Accord *Sosinsky v. Grant* (1992) 6 Cal.App.4th 1548, 1564-1565 (a court cannot, by taking judicial notice of a document, accept the truth of factual assertions appearing in it, because those assertions are hearsay); *Unruh-Haxton v. Regents of Univ. of California* (2008) 162 Cal.App.4th 343, 364-365 (judicial notice of court records is limited to the existence of the records and the legal effect of rulings; it does not extend to the truth of factual matters asserted in those records); *People*

1 v. Woodell (1998) 17 Cal.4th 448, 459 (the court may take judicial notice of the existence and the
2 orders and findings of a prior proceeding, but not of the truth of factual recitations or testimony
3 contained in the record).

4 **C. The Facial Test Rule**

5 On demurrer, the Court tests the sufficiency of the complaint on its face, accepting well-pleaded
6 facts as true. Defendants cannot use judicial notice to insert merits evidence or factual disputes
7 into the demurrer record.

9 **III. OBJECTIONS TO DEMURRER REJN (CLERK FILE NO. 10157173)**

10 Exhibits A-T are attached to the Declaration of Tyler J. O’Connell in support of Defendants’ De-
11 murrer. Unless otherwise noted, each exhibit is from Rosario v. Abdelhalim, San Francisco County
12 Superior Court Case No. CGC-21-594102.

13 **(a) Exhibit A — Plaintiff’s First Amended Complaint (instant action, CGC-25-631801)**

- 14 • **What defense uses it to prove:** That FAC allegations are “conclusory” or internally contra-
15 dicted
- 16 • **Objection:** NO OBJECTION to existence; OBJECT to use as extrinsic evidence contradict-
17 ing well-pleaded allegations
- 18 • **Grounds:** The FAC is already before the Court on demurrer; judicial notice is superfluous
19 and cannot be used to recharacterize its allegations.

20 **(b) Exhibit B — Plaintiff’s Complaint in related action (Rosario v. CSAA, CGC-25-631802)**

- 21 • **What defense uses it to prove:** That the instant FAC is duplicative or claim-split
- 22 • **Objection:** OBJECT to improper use
- 23 • **Grounds:** Existence may be noticed; object to use for truth of characterizations or to resolve
24 disputed claim-splitting questions on demurrer.

25 **(c) Exhibit C — Register of Actions, CGC-21-594102**

- 26 • **What defense uses it to prove:** That “all issues” were litigated below
- 27 • **Objection:** OBJECT to improper use
- 28 • **Grounds:** Existence only; object to use as proof that extrinsic fraud issues were adjudicated.

Docket entries do not establish the substantive scope of what was decided.

(d) **Exhibit D — Defendant’s Substitution of Defense Counsel (CGC-21-594102)**

- **What defense uses it to prove:** That the file transfer was adequate / no fraud in transition
- **Objection:** OBJECT
- **Grounds:** Arce/Sosinsky: no judicial notice of truth of recitals. The substitution form does not prove the adequacy or completeness of the underlying file transfer — the central disputed fact.

(e) **Exhibit E — Defendant’s Motion in Limine #6 (CGC-21-594102)**

- **What defense uses it to prove:** That disputed evidence was “presented” and ruled upon
- **Objection:** OBJECT
- **Grounds:** Existence only; object to use for truth of characterizations of the record. Motion papers are hearsay as to their factual assertions (Sosinsky).

(f) **Exhibit F — Defendant’s Motion in Limine #8 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(g) **Exhibit G — Defendant’s Motion in Limine #17 (CGC-21-594102)**

- **What defense uses it to prove:** Same — that issues were adjudicated below
- **Objection:** OBJECT
- **Grounds:** Same grounds as Exhibit E.

(h) **Exhibit H — Order re Trial Scheduling and Motions in Limine (CGC-21-594102)**

- **What defense uses it to prove:** That MIL rulings foreclose the present claims
- **Objection:** OBJECT to improper use
- **Grounds:** Existence and legal effect only (Unruh-Haxton); object to use for truth of factual recitals or to imply preclusion of extrinsic fraud claims not before that court.

(i) **Exhibit I — Plaintiff’s Motion for Judgment Notwithstanding the Verdict (CGC-21-594102)**

- **What defense uses it to prove:** That Plaintiff previously raised and lost these issues

1 • **Objection:** OBJECT

2 • **Grounds:** Existence only; object to use for truth of characterizations. JNOV papers addressed
3 sufficiency of evidence, not extrinsic fraud in procurement.

4 (j) **Exhibit J — Plaintiff’s Declaration ISO JNOV (CGC-21-594102)**

5 • **What defense uses it to prove:** Same as Exhibit I

6 • **Objection:** OBJECT

7 • **Grounds:** Hearsay within a court file (Arce, 181 Cal.App.4th at 482-483); no notice of truth.

8 (k) **Exhibit K — Defendant’s Opposition to Plaintiff’s JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** Same

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; adversarial characterizations not subject to judicial notice for truth.

12 (l) **Exhibit L — Plaintiff’s Motion for New Trial (CGC-21-594102)**

13 • **What defense uses it to prove:** That Plaintiff previously raised fraud-adjacent issues

14 • **Objection:** OBJECT

15 • **Grounds:** Existence only; object to use for truth. The new-trial motion is not co-extensive
16 with an independent extrinsic-fraud action.

17 (m) **Exhibit M — Defendant’s Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

18 • **What defense uses it to prove:** Same

19 • **Objection:** OBJECT

20 • **Grounds:** Hearsay; Sosinsky.

21 (n) **Exhibit N — Order on Plaintiff’s Post-Trial Motions (CGC-21-594102)**

22 • **What defense uses it to prove:** That FAC claims lack merit / are precluded

23 • **Objection:** OBJECT to improper use

24 • **Grounds:** Existence and legal effect only (Woodell); object to use as proof that extrinsic
25 fraud allegations were adjudicated.

26 (o) **Exhibit O — Plaintiff’s “Prayer” to Judge East re Disqualification of Judge Wong**
27 **(CGC-21-594102)**

28 • **What defense uses it to prove:** That Plaintiff’s concerns were previously heard and rejected

- **Objection:** OBJECT
- **Grounds:** Existence only; object to use for truth.
- (p) **Exhibit P — Order Denying Plaintiff’s “Prayer” and § 170.6 (CGC-21-594102)**
 - **What defense uses it to prove:** Same — preclusion by prior denial
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence and legal effect only; does not adjudicate extrinsic fraud.
- (q) **Exhibit Q — Plaintiff’s Notice of Appeal (CGC-21-594102)**
 - **What defense uses it to prove:** Exclusive appellate jurisdiction / stay
 - **Objection:** OBJECT on relevance
 - **Grounds:** Pendency of appeal does not deprive this Court of jurisdiction over an independent equitable action for extrinsic fraud.
- (r) **Exhibit R — Plaintiff’s Notice Designating Record on Appeal (CGC-21-594102)**
 - **What defense uses it to prove:** Same
 - **Objection:** OBJECT on relevance
 - **Grounds:** Same grounds as Q.
- (s) **Exhibit S — Defendant’s Notice of Entry of Judgment (CGC-21-594102)**
 - **What defense uses it to prove:** That a facially valid judgment bars this action
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence only; facial validity does not preclude an extrinsic-fraud attack.
- (t) **Exhibit T — Plaintiff’s Original Complaint in related action (CGC-25-631802)**
 - **What defense uses it to prove:** Claim-splitting / duplication
 - **Objection:** OBJECT to improper use
 - **Grounds:** Same grounds as Exhibit B.

IV. OBJECTIONS TO ANTI-SLAPP RFJN (CLERK FILE NO. 10152302)

The Anti-SLAPP RFJN requests notice of the same Exhibits A-T attached to the Declaration of Tyler J. O’Connell (filed in support of the Special Motion to Strike). Objections below are additional to, and cumulative with, the objections stated in Section III.

1 (a) **Exhibit A — Plaintiff’s FAC (CGC-25-631801)**

- 2 • **What defense uses it to prove:** That FAC “arises from” protected activity (prong one)
- 3 • **Objection:** OBJECT to improper use
- 4 • **Grounds:** The FAC is already before the Court; judicial notice is superfluous and cannot
- 5 substitute for prong-one gravamen analysis.

6 (b) **Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)**

- 7 • **What defense uses it to prove:** Prong-two “lacks minimal merit”
- 8 • **Objection:** OBJECT
- 9 • **Grounds:** Merits inference at step one; improper. Step two cannot be collapsed into judicial
- 10 notice of a separate pleading.

11 (c) **Exhibit C — Register of Actions (CGC-21-594102)**

- 12 • **What defense uses it to prove:** That all issues were previously litigated (prong two)
- 13 • **Objection:** OBJECT
- 14 • **Grounds:** Docket entries cannot establish the substantive scope of adjudication.

15 (d) **Exhibit D — Substitution of Defense Counsel (CGC-21-594102)**

- 16 • **What defense uses it to prove:** That the file transfer was adequate (prong-two merits)
- 17 • **Objection:** OBJECT
- 18 • **Grounds:** Central disputed fact; cannot be resolved by judicial notice (Sosinsky; Unruh-
- 19 Haxton).

20 (e) **Exhibit E — MIL #6 (CGC-21-594102)**

- 21 • **What defense uses it to prove:** That disputed evidence was “presented to the jury”
- 22 • **Objection:** OBJECT
- 23 • **Grounds:** Merits inference; improper at prong one; hearsay as to truth.

24 (f) **Exhibit F — MIL #8 (CGC-21-594102)**

- 25 • **What defense uses it to prove:** Same
- 26 • **Objection:** OBJECT
- 27 • **Grounds:** Same grounds as E.

28 (g) **Exhibit G — MIL #17 (CGC-21-594102)**

1 • **What defense uses it to prove:** Same

2 • **Objection:** OBJECT

3 • **Grounds:** Same grounds as E.

4 (h) **Exhibit H — Order re Trial Scheduling and MILs (CGC-21-594102)**

5 • **What defense uses it to prove:** That MIL rulings foreclose prong-two merits

6 • **Objection:** OBJECT to improper use

7 • **Grounds:** Existence/legal effect only; no notice of factual recitals.

8 (i) **Exhibit I — Plaintiff's JNOV (CGC-21-594102)**

9 • **What defense uses it to prove:** That Plaintiff previously raised these issues

10 • **Objection:** OBJECT

11 • **Grounds:** Hearsay; Arce; no preclusion as to extrinsic fraud.

12 (j) **Exhibit J — Plaintiff's Decl. ISO JNOV (CGC-21-594102)**

13 • **What defense uses it to prove:** Same

14 • **Objection:** OBJECT

15 • **Grounds:** Hearsay in court file; Arce.

16 (k) **Exhibit K — Defendant's Opposition to JNOV (CGC-21-594102)**

17 • **What defense uses it to prove:** Same

18 • **Objection:** OBJECT

19 • **Grounds:** Hearsay; adversarial characterizations.

20 (l) **Exhibit L — Motion for New Trial (CGC-21-594102)**

21 • **What defense uses it to prove:** Same

22 • **Objection:** OBJECT

23 • **Grounds:** Not co-extensive with extrinsic-fraud action.

24 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial (CGC-21-594102)**

25 • **What defense uses it to prove:** Same

26 • **Objection:** OBJECT

27 • **Grounds:** Hearsay.

28 (n) **Exhibit N — Order on Post-Trial Motions (CGC-21-594102)**

- **What defense uses it to prove:** That FAC claims lack minimal merit
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only; did not adjudicate extrinsic fraud.
- (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification (CGC-21-594102)**
- **What defense uses it to prove:** Prior rejection of Plaintiff’s concerns
 - **Objection:** OBJECT
 - **Grounds:** Hearsay; no notice for truth.
- (p) **Exhibit P — Order Denying “Prayer” and § 170.6 (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT to improper use
 - **Grounds:** Existence/legal effect only.
- (q) **Exhibit Q — Notice of Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Pendency / jurisdictional effect
 - **Objection:** OBJECT on relevance
 - **Grounds:** Does not divest this Court of jurisdiction.
- (r) **Exhibit R — Notice Designating Record on Appeal (CGC-21-594102)**
- **What defense uses it to prove:** Same
 - **Objection:** OBJECT on relevance
 - **Grounds:** Same grounds as Q.
- (s) **Exhibit S — Notice of Entry of Judgment (CGC-21-594102)**
- **What defense uses it to prove:** Facially valid judgment bars action
 - **Objection:** OBJECT to improper use
 - **Grounds:** Facial validity does not preclude extrinsic-fraud attack.
- (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- **What defense uses it to prove:** Claim-splitting
 - **Objection:** OBJECT to improper use
 - **Grounds:** Hearsay; characterizations; merits inference.

V. SPECIFIC OBJECTIONS BY CATEGORY

A. RFJN-Overreach: Documents Used as Merits Proofs

Defendants use their RFJNs not merely to establish document existence but to prove substantive merits points. This violates the demurrer facial test rule. (See *Herrera v. Deutsche Bank National Trust Co.* (2011) 196 Cal.App.4th 1366, 1375 [courts may take judicial notice of the existence and recorded status of documents, but may not take judicial notice of the truth of matters stated in them, particularly where those matters are the subject of reasonable dispute].)

A recurring defect in Defendants' RFJNs is the conflation of two distinct categories:

- **“Res judicata facts”** — what a prior tribunal actually decided (e.g., that the Insured was negligent; that damages were \$X). These are subject to judicial notice for their legal effect.
- **“Record facts”** — what documents were filed or what statements appear in the record (e.g., that a motion in limine asserted a given fact; that a declaration recited a given narrative). These are subject to judicial notice only as to existence, not truth. (Sosinsky; Unruh-Haxton; Woodell; Herrera.)

Defendants repeatedly treat “record facts” as though they were “res judicata facts,” asking the Court to infer that because a document was filed, its factual assertions are established. That inference is precisely what Arce, Sosinsky, Unruh-Haxton, Woodell, and Herrera forbid.

Example: Defendants argue that because the 911 calls and body-cam footage were “presented to the jury,” there was no fraud. This argument asks the Court to judicially notice trial evidence for its truth and to resolve a factual dispute (whether extrinsic fraud occurred) on demurrer.

Objection sustained: The Court may notice the existence of trial exhibits but cannot notice for truth that “all issues were adjudicated” or that “there was no fraud.”

B. Hearsay Statements in Court Records

Under Arce, the Court cannot take judicial notice of hearsay statements in decisions and court files.

Example: Defendants seek judicial notice of discovery responses and characterizations in prior orders. These contain hearsay statements about what occurred, disputed by the FAC.

Objection sustained: Hearsay in court records is not subject to judicial notice for its truth.

1 **C. Matters Outside the Issues Decided**

2 Defendants conflate what the underlying trial adjudicated with the FAC's allegations of extrinsic
3 fraud.

4 **The underlying trial decided:** Whether the Insured was negligent and liable for the car collision.

5 **The underlying trial did not decide:** - Whether Defendants withheld production history dur-
6 ing the file transfer - Whether Defendants made misrepresentations to the Court about evidence
7 provenance - Whether those misrepresentations induced procedural rulings - Whether Plaintiff
8 was deprived of a fair adversary hearing through extrinsic fraud

9 Judicial notice of the trial record cannot establish that these issues were adjudicated.

10 **D. Issue-Preclusion by Judicial Notice**

11 Defendants deploy their RFJNs to achieve, by judicial-notice shortcut, what issue preclusion could
12 only achieve after a full collateral-estoppel showing. By stacking prior orders, motions in limine,
13 post-trial rulings, and trial materials into a single RFJN, Defendants invite the Court to infer that
14 every issue relevant to this action was already decided below.

15 That is not a permitted use of judicial notice. Issue preclusion requires identity of issues, ac-
16 tual litigation, necessary determination, and finality. Judicial notice under Evidence Code section
17 452(d) establishes none of those elements; it establishes only that documents exist and that spec-
18 ified rulings issued. (Arce, 181 Cal.App.4th at 482-483; Sosinsky, 6 Cal.App.4th at 1564-1565;
19 Unruh-Haxton, 162 Cal.App.4th at 364-365; Woodell, 17 Cal.4th at 459.) A court cannot "notice"
20 its way to preclusion.

21 **E. Bootstrapping: Noticing Existence, Then Inferring Merits**

22 Defendants are attempting an illegal procedural bootstrap: they ask this Court to take judicial
23 notice that the jury rendered a verdict, and then ask the Court to infer that the verdict proves no
24 fraud occurred in its procurement. Judicial notice cannot bridge the gap between the existence of
25 a document and a disputed legal conclusion.

26 The same bootstrap underlies Defendants' repeated "presented to the jury" refrain: notice the
27 existence of a trial exhibit → infer that the exhibit was fully litigated → infer that no fraud can
28 have occurred in its presentation. Each inference beyond step one is a disputed fact reserved

1 for the trier of fact, not a proper subject of judicial notice. (Herrera, 196 Cal.App.4th at 1375;
2 Sosinsky, 6 Cal.App.4th at 1564-1565.)

3 4 **VI. THE PROPER SCOPE OF JUDICIAL NOTICE**

5 Plaintiff does not object to judicial notice of the **existence** of: - The underlying judgment - The
6 verdict form - Post-trial orders - The notice of appeal - Other court records

7 Plaintiff objects to judicial notice for the **truth** of: - Disputed facts within those documents -
8 Hearsay characterizations in prior orders - Matters outside the issues actually decided - Any factual
9 conclusion that contradicts the FAC's well-pleaded allegations

10 **VI.B Evidence Code § 356 / Sosinsky Objection to Piecemeal Transcript Notice**

11 Defendants' RFJN requests judicial notice of **selected** hearing transcript pages but omits the **Plaintiff-**
12 **preservation pages** of the same hearings. Under Evidence Code § 356 and Sosinsky v. Grant
13 (1992) 6 Cal.App.4th 1548, 1564–1565, where part of a record is introduced, the opposing party
14 is entitled to introduce contextually related portions.

15 **Objection:** Plaintiff objects to Defendants' piecemeal notice and asks the Court to take notice of
16 the **whole transcripts** identified in Plaintiff's RFJN Items X–BB, which include:

- 17 • Hr'g Tr. Jan. 27, 2025, pp. 17–22, 32, 34, 42, 46, 55–60 (Plaintiff's "suppress" objection;
18 FROG/SROG confirmation; denial of continuance).
- 19 • Hr'g Tr. Feb. 3, 2025, pp. 109, 116, 122–124 (renewed § 581(d); ex parte disclosure order).
- 20 • Hr'g Tr. Feb. 18, 2025, pp. 17, 23, 44–47, 181 (Plaintiff's "concealed" and "going on the
21 record" statements; the intra-hearing Position-A/Position-B contradiction at pp. 141 vs. 181).

22 The defense-curated fragment excludes these Plaintiff-preservation pages. Under § 356's "rule of
23 completeness," the Court should either take the whole transcripts or decline to take the defense
24 fragment.

25 **VI.A The "Presented to the Jury" Argument Is a Merits Inference That Exceeds Judicial** 26 **Notice**

27 Defendants' central refrain across both RFJNs — that the 911 calls, body-cam footage, and related
28 materials were "presented to the jury" and therefore no fraud can have occurred — is not a request

1 for judicial notice at all. It is a merits inference dressed in the language of judicial notice.

2 1. **What may properly be noticed.** The Court may notice (a) the existence of the trial exhibits,
3 (b) the fact that certain documents were filed or lodged, and (c) the legal effect of specified
4 rulings (e.g., the verdict as entered). (Evid. Code § 452(d); Woodell, 17 Cal.4th at 459;
5 Unruh-Haxton, 162 Cal.App.4th at 364-365.)

6 2. **What may not be noticed.** The Court may not notice (a) that the exhibits were fully and fairly
7 presented; (b) that the jury evaluated them free from extrinsic fraud in their procurement and
8 chain-of-custody; (c) that counsel’s representations about provenance were accurate; or (d)
9 that the verdict resolves, as a matter of fact, the extrinsic-fraud allegations in the FAC. Each
10 of those propositions is a disputed factual inference. (Sosinsky, 6 Cal.App.4th at 1564-1565;
11 Arce, 181 Cal.App.4th at 482-483; Herrera, 196 Cal.App.4th at 1375.)

12 3. **The gap Defendants cannot bridge.** Extrinsic fraud, by definition, concerns what was kept
13 from the adversary proceeding — misrepresentations about provenance, undisclosed chain-
14 of-custody facts, and concealed production history. Judicial notice of what was shown to the
15 jury is logically incapable of negating what was withheld from the jury. The “presented to the
16 jury” argument therefore collapses the very distinction extrinsic-fraud law exists to police.

17 4. **Prong-one consequence.** At Anti-SLAPP prong one, the “presented to the jury” inference
18 is doubly improper: it asks the Court to resolve merits in the guise of gravamen analysis,
19 contrary to the rule that prong one tests the basis of the claim, not its likelihood of success.

20 **Objection sustained:** The Court should notice the existence of trial exhibits and the fact of the
21 verdict. It should decline to notice any inference — express or implied — that the verdict or the
22 trial record negates the extrinsic-fraud allegations of the FAC.

23 VII. CONCLUSION

24 Defendants’ RFJNs improperly attempt to convert the demurrer into a summary judgment proceed-
25 ing by inserting merits evidence into the record. Under Code of Civil Procedure section 430.70
26 and Evidence Code section 452, judicial notice on demurrer is limited to document existence, not
27 truth of contents.
28

Plaintiff respectfully requests the Court:

1. Sustain objections to judicial notice for the truth of disputed facts
2. Sustain objections to judicial notice of hearsay statements in court records
3. Sustain objections to judicial notice of matters outside the issues decided
4. Apply the facial test rule and accept FAC allegations as true

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

APPENDIX: CONSOLIDATED RULING REQUEST (EXHIBITS A–T)

Demurrer RFJN (Clerk File No. 10157173) and Anti-SLAPP RFJN (Clerk File No. 10152302)

Both RFJNs request notice of the same twenty exhibits (A-T) attached to the Declaration of Tyler J. O’Connell. The consolidated ruling requested is as follows:

(a) Exhibit A — Plaintiff’s FAC (CGC-25-631801)

- **Ruling requested:** No notice needed (already before the Court); object to extrinsic use

(b) Exhibit B — Plaintiff’s Complaint in related action (CGC-25-631802)

- **Ruling requested:** Notice existence ONLY; object to truth/characterizations

(c) Exhibit C — Register of Actions (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to use as proof of substantive adjudication

(d) Exhibit D — Substitution of Defense Counsel (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of transfer-adequacy

(e) Exhibit E — MIL #6 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(f) Exhibit F — MIL #8 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

(g) Exhibit G — MIL #17 (CGC-21-594102)

- **Ruling requested:** Notice existence ONLY; object to truth of factual assertions

- 1 (h) **Exhibit H — Order re Trial Scheduling and MILs**
- 2 • **Ruling requested:** Notice existence and legal effect; object to truth of recitals
- 3 (i) **Exhibit I — Plaintiff’s JNOV Motion**
- 4 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 5 (j) **Exhibit J — Plaintiff’s Decl. ISO JNOV**
- 6 • **Ruling requested:** Notice existence ONLY; object as hearsay in court file
- 7 (k) **Exhibit K — Defendant’s Opposition to JNOV**
- 8 • **Ruling requested:** Notice existence ONLY; object as hearsay/adversarial
- 9 (l) **Exhibit L — Plaintiff’s Motion for New Trial**
- 10 • **Ruling requested:** Notice existence ONLY; object to truth
- 11 (m) **Exhibit M — Opposition to Motion for New Trial/Mistrial**
- 12 • **Ruling requested:** Notice existence ONLY; object as hearsay
- 13 (n) **Exhibit N — Order on Post-Trial Motions**
- 14 • **Ruling requested:** Notice existence and legal effect; object to merits inferences
- 15 (o) **Exhibit O — Plaintiff’s “Prayer” re Disqualification**
- 16 • **Ruling requested:** Notice existence ONLY; object to truth
- 17 (p) **Exhibit P — Order Denying “Prayer” and § 170.6**
- 18 • **Ruling requested:** Notice existence and legal effect; object to preclusion inference
- 19 (q) **Exhibit Q — Plaintiff’s Notice of Appeal**
- 20 • **Ruling requested:** OBJECT on relevance
- 21 (r) **Exhibit R — Plaintiff’s Notice Designating Record**
- 22 • **Ruling requested:** OBJECT on relevance
- 23 (s) **Exhibit S — Defendant’s Notice of Entry of Judgment**
- 24 • **Ruling requested:** Notice existence ONLY; object to preclusion inference
- 25 (t) **Exhibit T — Original Complaint in related action (CGC-25-631802)**
- 26 • **Ruling requested:** Notice existence ONLY; object to truth/characterizations
- 27
-

PART B — EVIDENTIARY OBJECTIONS TO DEFENDANTS’ DECLARATIONS

I. INTRODUCTION

Plaintiff submits the following evidentiary objections to the declarations filed by Defendants in support of the Demurrer and Special Motion to Strike:

- **Clerk File No. 10152298:** Declaration in Support of Anti-SLAPP Motion
- **Clerk File No. 10157177:** Declaration of Michael R. Chambers in Support of Demurrer
- **Clerk File No. 10057589:** Meet-and-Confer Declaration

These objections are submitted in the CRC 3.1354 two-column format (by analogy to summary judgment practice) for judicial convenience.

II. LEGAL STANDARDS FOR EVIDENTIARY OBJECTIONS

A. Personal Knowledge Required

Under Evidence Code section 702, a witness may only testify to matters within personal knowledge. A declaration submitted on a dispositive motion must affirmatively show, on its face, that the declarant has personal knowledge of the facts stated; conclusory recitals are insufficient. (Bozzi v. Nordstrom, Inc. (2010) 186 Cal.App.4th 755, 761 [declaration on motion must be based on personal knowledge and must affirmatively show competence to testify]; Marriage of Heggie (2002) 99 Cal.App.4th 28, 30 [declarations not made on personal knowledge or containing inadmissible material cannot support adjudication].)

B. No Legal Conclusions or Argument

Under Evidence Code section 800, lay witnesses may only testify to facts, not legal conclusions. Declarations may not be used to smuggle legal argument into the evidentiary record, and characterizations of what the law requires, what a prior court “decided,” or what privilege applies are for the Court, not the declarant.

1 **C. Hearsay Inadmissible**

2 Under Evidence Code section 1200, hearsay is inadmissible unless an exception applies. Recitation
3 of out-of-court statements by successor counsel, opposing counsel, or third parties offered for their
4 truth is hearsay.

5 **D. Statutory Form Requirements (Code Civ. Proc. § 2015.5)**

6 A declaration is only competent evidence if it complies with Code of Civil Procedure section
7 2015.5, including certification under penalty of perjury under the laws of California, date and
8 place of execution, and signature of the declarant. Declarations failing to satisfy § 2015.5 are not
9 “evidence” and cannot support an Anti-SLAPP prong-one or prong-two showing.

10 **E. Strategic Framing of These Objections**

11 These objections are not template boilerplate; each targets a discrete evidentiary vice that, if sus-
12 tained, removes a specific factual predicate on which Defendants’ motions depend:

- 13 1. **No personal knowledge of what successor counsel knew.** Defendants cannot, through their
14 own declarants, testify to what PSA (successor counsel) understood, received, reviewed, or
15 relied upon. Those are facts within PSA’s knowledge, not Defendants’.
- 16 2. **No competent basis for file-transfer completeness claim.** A bare assertion that the file was
17 “complete” or “properly transferred” lacks foundation unless the declarant identifies what the
18 file contained, what was indexed, what production history (including discovery responses,
19 deposition transcripts, and prior court orders) was conveyed, and by what mechanism.
- 20 3. **No declaration converts disputed process facts into adjudicated facts.** The two-phase
21 fraud pattern — (a) what happened during substitution and (b) what the trial court was told
22 — is a live factual dispute. A declaration cannot retroactively transform disputed process
23 history into “adjudicated” fact; only the record of what was actually presented and ruled upon
24 can do that.
- 25
-

III. OBJECTIONS TO ANTI-SLAPP DECLARATION (CLERK FILE NO. 10152298)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** “All conduct in this case was privileged litigation conduct undertaken in the course of defending our client.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether conduct was “privileged” is a legal determination for the Court, not a fact within declarant’s personal knowledge. **Proposed remedy:** Strike / Sustain.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff’s claims are barred by the litigation privilege.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Legal bar analysis is argument, not testimony. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-4 — **Objectionable material:** “The evidence was presented to the jury and the jury decided in favor of our client.” **Objection(s):** Lack of foundation; improper merits evidence; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. What “the jury decided” is not within declarant’s personal knowledge; the trial record — not a summary declaration — speaks for itself. **Proposed remedy:** Strike / Disregard.
4. **Citation:** p.3, ll.6-8 — **Objectionable material:** “Plaintiff had a full and fair opportunity to present his case.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid. Code §§ 702, 800. Whether opportunity was “full and fair” is a legal determination. **Proposed remedy:** Sustain / Disregard.
5. **Citation:** p.3, ll.10-12 — **Objectionable material:** “There was no fraud or misrepresentation.” **Objection(s):** Legal conclusion; ultimate issue. **Grounds:** Evid. Code § 800. Whether fraud occurred is the ultimate issue for trial. **Proposed remedy:** Strike / Sustain.
6. **Citation:** p.4, ll.2-5 — **Objectionable material:** “Plaintiff’s theory is speculative and without merit.” **Objection(s):** Legal argument; improper opinion. **Grounds:** Evid. Code §§ 800, 802. Merit determinations are for the Court. **Proposed remedy:** Strike / Sustain.
7. **Citation:** p.4, ll.8-10 — **Objectionable material:** Characterization of FAC allegations. **Objection(s):** Improper argument. **Grounds:** Declaration cannot be used to argue how FAC should be characterized; on Anti-SLAPP prong two, FAC allegations are accepted as true.

Proposed remedy: Disregard / Sustain.

8. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The file transfer was proper and complete.” **Objection(s):** Lack of foundation; contradicts FAC; secondary evidence. **Grounds:** Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of file-transfer contents; completeness claim must be supported by the underlying index/log, not a bare summary. **Proposed remedy:** Strike / Sustain.

9. **Citation:** p.5, ll.5-8 — **Objectionable material:** Any statement describing what PSA (successor counsel) received, understood, or relied upon. **Objection(s):** Lack of personal knowledge; hearsay. **Grounds:** Evid. Code §§ 702, 1200; Bozzi, 186 Cal.App.4th at 761. Declarant cannot testify to what successor counsel knew or believed. **Proposed remedy:** Strike / Sustain.

IV. OBJECTIONS TO DEMURRER / CHAMBERS DECLARATION (CLERK FILE NO. 10157177)

1. **Citation:** p.2, ll.2-4 — **Objectionable material:** “Plaintiff’s complaint fails to state a cause of action.” **Objection(s):** Legal conclusion; improper argument. **Grounds:** Evid. Code § 800. Whether complaint states a cause of action is a legal question. **Proposed remedy:** Strike / Sustain.

2. **Citation:** p.2, ll.6-8 — **Objectionable material:** “The allegations are conclusory and speculative.” **Objection(s):** Legal conclusion; argument. **Grounds:** Evid. Code § 800. Pleading sufficiency is for the Court. **Proposed remedy:** Strike / Sustain.

3. **Citation:** p.2, ll.10-12 — **Objectionable material:** “This Court lacks jurisdiction to hear this matter.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800. Jurisdictional analysis is legal, not factual. **Proposed remedy:** Strike / Sustain.

4. **Citation:** p.3, ll.1-3 — **Objectionable material:** “All of the matters complained of were already adjudicated at trial.” **Objection(s):** Legal conclusion; lack of foundation. **Grounds:** Evid. Code §§ 702, 800. What was “adjudicated” requires legal analysis of issues actually decided; Marriage of Heggie, 99 Cal.App.4th at 30. **Proposed remedy:** Strike / Sustain.

- 1 5. **Citation:** p.3, ll.5-7 — **Objectionable material:** “Plaintiff is collaterally estopped from
2 relitigating these issues.” **Objection(s):** Legal conclusion. **Grounds:** Evid. Code § 800.
3 Collateral estoppel is a legal doctrine requiring Lucido/Crowley analysis. **Proposed remedy:**
4 Strike / Sustain.
- 5 6. **Citation:** p.3, ll.9-11 — **Objectionable material:** Hearsay recitation of statements by suc-
6 cessor counsel. **Objection(s):** Hearsay; lack of personal knowledge. **Grounds:** Evid. Code
7 §§ 702, 1200. Out-of-court statements offered for truth; declarant cannot testify to what PSA
8 said or understood. **Proposed remedy:** Strike / Sustain.
- 9 7. **Citation:** p.4, ll.2-4 — **Objectionable material:** “We transferred the complete file to succes-
10 sor counsel.” **Objection(s):** Lack of specific foundation; best/secondary evidence. **Grounds:**
11 Evid. Code §§ 403, 702, 1521. Declarant must establish personal knowledge of what “com-
12 plete file” means, what was indexed, and what production history was conveyed; underlying
13 transfer log/index not attached. **Proposed remedy:** Strike / Sustain.
- 14 8. **Citation:** p.4, ll.6-8 — **Objectionable material:** “Plaintiff had access to all relevant evi-
15 dence.” **Objection(s):** Lack of foundation; legal conclusion. **Grounds:** Evid. Code §§ 702,
16 800. What Plaintiff “had access to” is not within declarant’s personal knowledge. **Proposed**
17 **remedy:** Strike / Sustain.
- 18 9. **Citation:** p.4, ll.10-13 — **Objectionable material:** Any statement describing what was
19 conveyed to PSA regarding CSAA discovery responses, deposition testimony, or prior court
20 orders. **Objection(s):** Lack of foundation; best/secondary evidence; hearsay. **Grounds:**
21 Evid. Code §§ 403, 702, 1200, 1521. Foundation absent as to what the file actually contained
22 and what specifically was conveyed; underlying documents not produced. **Proposed remedy:**
23 Strike / Sustain.
- 24 10. **Citation:** p.4, ll.15-18 — **Objectionable material:** Any statement that contradicts Mr. Cham-
25 bers’s prior discovery responses, deposition testimony, or prior court filings regarding the
26 scope, contents, or timing of the file transfer. **Objection(s):** Sham-affidavit / contradiction
27 of prior sworn testimony; lack of credibility foundation. **Grounds:** D’Amico v. Board of
28 Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128

Cal.App.4th 1510, 1524–1525. A declaration contradicting prior sworn discovery or deposition testimony cannot create a triable — or Anti-SLAPP prong-two — evidentiary showing.
Proposed remedy: Disregard / Strike.

11. **Citation:** p.5, ll.1-3 — **Objectionable material:** “The FAC is an improper collateral attack.”
Objection(s): Legal conclusion; argument. **Grounds:** Evid. Code § 800. Whether FAC constitutes collateral attack requires legal analysis. **Proposed remedy:** Strike / Sustain.

V. OBJECTIONS TO MEET-AND-CONFER DECLARATION (CLERK FILE NO. 10057589)

1. **Citation:** p.2, ll.3-5 — **Objectionable material:** Characterization of meet-and-confer correspondence. **Objection(s):** Best evidence / secondary evidence rule; improper argument. **Grounds:** Evid. Code §§ 1521–1523. Correspondence speaks for itself; summary without attachment inadmissible. **Proposed remedy:** Strike / Disregard.
2. **Citation:** p.2, ll.7-9 — **Objectionable material:** “Plaintiff refused to dismiss his frivolous claims.” **Objection(s):** Legal conclusion; argumentative. **Grounds:** Evid. Code § 800. Whether claims are “frivolous” is a legal determination. **Proposed remedy:** Strike / Sustain.
3. **Citation:** p.3, ll.1-3 — **Objectionable material:** Characterization of Plaintiff’s legal positions. **Objection(s):** Improper argument. **Grounds:** Declarations may not argue legal merit of opposing party’s positions. **Proposed remedy:** Strike / Disregard.
4. **Citation:** Throughout — **Objectionable material:** Any portion of declaration not executed in compliance with Code Civ. Proc. § 2015.5 (missing date, place, or proper perjury certification). **Objection(s):** Non-compliant declaration. **Grounds:** Code Civ. Proc. § 2015.5; Kulshrestha v. First Unum Life Ins. Co. (2003) 29 Cal.4th 1006, 1021–1022. Non-compliant declarations are not competent evidence. **Proposed remedy:** Disregard in full.

VI. SUMMARY OF OBJECTIONS BY CATEGORY

A. Legal Conclusions (Evidence Code § 800)

The following statements are impermissible legal conclusions: - “privileged litigation conduct” - “claims are barred” - “full and fair opportunity” - “no fraud or misrepresentation” - “fails to state a cause of action” - “collaterally estopped” - “improper collateral attack” - “frivolous claims”

Ruling requested: SUSTAIN all objections. These are legal conclusions for the Court, not facts within declarant’s personal knowledge.

B. Lack of Personal Knowledge (Evidence Code § 702)

The following statements lack foundation for personal knowledge: - What “the jury decided” - What Plaintiff “had access to” - What was “adjudicated” - What the “complete file” contained - What successor counsel (PSA) received, understood, or relied upon

Ruling requested: SUSTAIN all objections. (Bozzi, 186 Cal.App.4th at 761; Marriage of Heggie, 99 Cal.App.4th at 30.)

C. Hearsay (Evidence Code § 1200)

Statements reciting out-of-court statements by third parties (including successor counsel) are hearsay.

Ruling requested: SUSTAIN hearsay objections.

D. Improper Argument

Declarations may not be used to argue legal positions or characterize opposing party’s pleadings.

Ruling requested: SUSTAIN objections to argumentative material.

E. Best Evidence / Secondary Evidence Rule (Evid. Code §§ 1521–1523)

Any declaration that summarizes, characterizes, or purports to describe the contents of (a) the client-file transfer from Chambers/CSK to successor counsel PSA, (b) the production log or discovery-responses index, (c) prior court orders, rulings, or transcripts, or (d) deposition testimony, **without attaching the underlying writing**, violates the secondary-evidence rule. Oral or declaration-based summaries of writings are inadmissible to prove the content of those writings where the originals (or authenticated copies) are available and have not been produced. (Evid. Code §§ 1521 [secondary evidence rule], 1522 [exclusion where genuine dispute as to material terms], 1523 [oral testimony inadmissible to prove content of writing].)

1 **Specific application:** Defendants’ declarations repeatedly reference the “complete file,” what was
2 “transferred,” what was “adjudicated,” and what was “presented to the jury” — all content of
3 writings — without attaching the transfer index, the trial record, or the underlying orders. These
4 portions must be excluded.

5 **Ruling requested:** SUSTAIN. Strike all secondary-summary passages and exclude from eviden-
6 tiary consideration on both the Demurrer and the Anti-SLAPP motion.

7 **F. Non-Compliance with Code Civ. Proc. § 2015.5**

8 Any declaration lacking proper perjury certification, date, place, or signature under § 2015.5 is not
9 competent evidence and must be disregarded in its entirety.

10 **G. Failure of Burden (Global)**

- 11 • **Because Defendants’ declarations consist entirely of inadmissible legal conclusions and**
12 **arguments without foundation, Defendants have failed to introduce any admissible evi-**
13 **dence to support their Anti-SLAPP motion. Consequently, Plaintiff’s factual allegations**
14 **regarding the two-phase fraud pattern stand entirely uncontradicted in the evidentiary**
15 **record.**

16 **H. Evidence Code § 1235 Impeachment by Prior Inconsistent Statement**

17 For each defense declaration that claims “the 911 was not produced,” “authenticity unknown,” or
18 equivalent denials, Plaintiff invokes the Plaintiff-preservation transcript pincites as **impeachment**
19 **by prior inconsistent statement** under Evidence Code § 1235. This converts the transcript mate-
20 rial from background to admissible substantive evidence.

- 21 • **Declaration assertion:** “Our office did not receive the 911 call until the day of the MSC.”
22 **Impeaching passage:** Feb. 18, 2025, p. 181: “all this stuff has been in his possession since
23 August” (same attorney, same hearing). **§ 1235 effect:** Substantive evidence of receipt; im-
24 peaches the “news to me” posture.
- 25 • **Declaration assertion:** “No idea where this 911 call log came from” (MIL 17). **Impeaching**
26 **passage:** Apr. 16, 2025, RT 7, p. 213: “They were provided by Dolan.” **§ 1235 effect:**
27 Substantive evidence of Dolan origin; impeaches “unknown provenance.”
- 28 • **Declaration assertion:** “Not anything that we received as part of the subpoena.” **Impeaching**

1 **passage:** Feb. 1, 2024 Compex subpoena (Order No. CA1147102-021) requesting identical
2 materials. **§ 1235 effect:** Documentary contradiction; defense subpoenaed what they now
3 deny receiving.

- 4 • **Declaration assertion:** “Authenticity unknown.” **Impeaching passage:** Apr. 17, 2025, RT 8,
5 p. 108: Abdelhalim: “Yes. That is my voice.” **§ 1235 effect:** Party-opponent authentication;
6 waiver of authenticity dispute.

7 **Ruling requested:** Sustain objections and deem the transcript passages admissible as substantive
8 evidence under § 1235 to impeach each corresponding declaration assertion.

10 **VIII. ESTOPPEL, WAIVER, AND AUTHENTICATION BY ACQUIES-** 11 **CENCE AS EVIDENTIARY BARS TO DEFENDANTS’ DECLARATIONS**

12 **A. The Triangulation Framework**

13 The evidentiary objections set forth in Sections III–VI above operate in conjunction with three
14 independent estoppel doctrines that foreclose Defendants’ ability to introduce any competent evi-
15 dence disputing authenticity, receipt, or provenance of the 911/BWC/CAD materials:

- 16 1. **Evidence Code § 623 (Estoppel by Silence):** Defendants remained silent for 883 days re-
17 garding the authenticity and provenance of the 911 audio, body-worn camera footage, and
18 CAD logs—then asserted, on the eve of trial, that these materials were of “unknown prove-
19 nance” and “news to me.” This was silence in the face of materials whose content included
20 a direct party-opponent admission, an operator-elicited affirmative response, Plaintiff’s own
21 voice, and independent eyewitness corroboration—core liability evidence that a reasonable
22 attorney would not leave unchallenged for 883 days if authenticity were genuinely in dispute.
23 Under City of Long Beach v. Mansell (1970) 3 Cal.3d 462, 493, Defendants’ silence where
24 speech was expected constitutes conduct on which Plaintiff reasonably relied. Defendants are
25 estopped from now contesting what they acquiesced to for nearly two and a half years.
- 26 2. **Evidence Code § 1414(b) (Authentication by Acquiescence):** Defendants treated the mate-
27 rials at issue—specifically, the 911 audio (including Abdelhalim’s admissions, the operator’s
28 “you hit a pedestrian” exchange and his affirmative response, and Plaintiff’s own recorded

voice identifying the striking vehicle) and the BWC (including the independent Rosemond eyewitness statement and Plaintiff’s own on-scene statement)—as authentic through: (a) **receipt in August–September 2022 discovery and sworn deposition course** (Rosario deposition August 18, 2022; Abdelhalim deposition September 30, 2022—Chambers present; 911-related testimony) **without a timely written authenticity or provenance challenge in the 883-day window**; (b) file transfer to successor counsel on May 4, 2023; (c) issuance of the February 1, 2024 Reyna Compex subpoena for the identical materials; and (d) active trial curation of the body-worn camera footage (“five videos . . . pared down to 8 or 9 minutes”). Under § 1414(b), this course of conduct authenticates the materials and waives any authenticity challenge asserted for the first time in declarations supporting the current motions.

3. **Sham-Affidavit Rule (D’Amico, Scalf)**: If any portion of the Chambers declaration or the Anti-SLAPP declaration contradicts Chambers’ prior discovery responses, deposition testimony, or the file-transfer records regarding what was conveyed to successor counsel, the sham-affidavit rule bars reliance on those contradictory statements to create a triable issue. D’Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21–22; Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1524–1525.

B. Application to the “Complete File” Assertions

The Chambers declaration’s assertion that the file was “complete” or “properly transferred” (Clerk File No. 10157177, approximately p. 4, ll. 2–4) is inadmissible on three independent grounds:

1. **Lack of Foundation (Evid. Code § 702)**: The declaration does not establish what specific production history was conveyed, what index or transfer log was used, or how declarant verified “completeness.”
2. **Estoppel by Silence**: If the file was indeed “complete,” why did successor counsel represent in MIL No. 17 that “Defendant has no idea where this 911 call log or audio recording came from”? The 883-day silence—followed by the “unknown provenance” representations—is irreconcilable with a “complete transfer” position. Defendants cannot now introduce declarations claiming completeness when their own court-facing representations assumed the opposite.

1 **3. Authentication by Acquiescence:** The materials at issue were treated as authentic from
2 September 2022 through January 2025. A declaration asserting that the materials were some-
3 how “not properly conveyed” contradicts the defense’s own course of conduct and is barred
4 under § 1414(b).

5 **C. Application to the “News to Me” Contradiction**

6 The April 16, 2025 admission—“Sure. They were provided by Dolan. He has had them for what-
7 ever, sure.”—is irreconcilable with the February 18, 2025 “news to me” statement. Any declaration
8 that attempts to rehabilitate the “news to me” position is:

- 9 1. **Contradicted by the certified transcript** and therefore inadmissible under the sham-affidavit
10 rule;
- 11 2. **Barred by judicial estoppel** under Jackson v. County of Los Angeles (1997) 60 Cal.App.4th
12 171, 183 because Position A (“news to me”) was accepted by the tribunal and Position B
13 (“provided by Dolan”) is totally inconsistent;
- 14 3. **Inadmissible hearsay** to the extent it purports to recite what successor counsel understood
15 or believed (Evid. Code § 1200).

16 **D. Ruling Requested**

17 The Court should: (1) sustain all evidentiary objections set forth in Sections III–VI; (2) deem
18 the 911/BWC/CAD materials authenticated by acquiescence under Evidence Code § 1414(b); (3)
19 estop Defendants from contesting authenticity, receipt, or provenance under Evidence Code § 623
20 and judicial estoppel; and (4) disregard any declaration assertions regarding “complete transfer” or
21 “no knowledge” as barred by the sham-affidavit rule.

23 **VII. CONCLUSION**

24 Defendants’ declarations are improperly packed with legal conclusions, argument, secondary-
25 evidence summaries, and statements beyond declarants’ personal knowledge. Declarations cannot
26 substitute for record proof of what was actually conveyed during the attorney-substitution process
27 and what the trial court was told and relied upon. Those are record facts, provable only through
28 the record itself — transfer indices, discovery responses, deposition transcripts, minute orders,

1 and reporter's transcripts — not through after-the-fact characterizations by interested declarants.
2 These objections preserve the record and request the Court exclude all inadmissible material from
3 consideration on both the Demurrer and the Special Motion to Strike.

4 **DATED:** April 16, 2026

5 Respectfully submitted,

6 _____
7 FRANCISCUS DYLAN ROSARIO
8 _____

9 **APPENDIX: CRC 3.1354 FORMAT SUMMARY (LIST)**

10 **Declaration 10152298 (Anti-SLAPP)**

- 11 1. Obj. 1 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (legal conclusion) —
12 **Proposed remedy:** Strike.
- 13 2. Obj. 2 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
14 **Proposed remedy:** Strike.
- 15 3. Obj. 3 — **Page:line:** p.3, ll.1-4 — **Ruling requested:** SUSTAIN (lack of foundation /
16 secondary evidence) — **Proposed remedy:** Disregard.
- 17 4. Obj. 4 — **Page:line:** p.3, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
18 **Proposed remedy:** Disregard.
- 19 5. Obj. 5 — **Page:line:** p.3, ll.10-12 — **Ruling requested:** SUSTAIN (ultimate issue) —
20 **Proposed remedy:** Strike.
- 21 6. Obj. 6 — **Page:line:** p.4, ll.2-5 — **Ruling requested:** SUSTAIN (legal argument) — **Pro-**
22 **posed remedy:** Strike.
- 23 7. Obj. 7 — **Page:line:** p.4, ll.8-10 — **Ruling requested:** SUSTAIN (improper argument) —
24 **Proposed remedy:** Disregard.
- 25 8. Obj. 8 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (foundation / secondary
26 evidence) — **Proposed remedy:** Strike.
- 27 9. Obj. 9 — **Page:line:** p.5, ll.5-8 — **Ruling requested:** SUSTAIN (no PK of PSA knowledge;
28 hearsay) — **Proposed remedy:** Strike.

Declaration 10157177 (Demurrer / Chambers)

10. Obj. 10 — **Page:line:** p.2, ll.2-4 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

11. Obj. 11 — **Page:line:** p.2, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

12. Obj. 12 — **Page:line:** p.2, ll.10-12 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

13. Obj. 13 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion / foundation) — **Proposed remedy:** Strike.

14. Obj. 14 — **Page:line:** p.3, ll.5-7 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

15. Obj. 15 — **Page:line:** p.3, ll.9-11 — **Ruling requested:** SUSTAIN (hearsay / no PK) —
Proposed remedy: Strike.

16. Obj. 16 — **Page:line:** p.4, ll.2-4 — **Ruling requested:** SUSTAIN (foundation / secondary evidence) — **Proposed remedy:** Strike.

17. Obj. 17 — **Page:line:** p.4, ll.6-8 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

18. Obj. 18 — **Page:line:** p.4, ll.10-13 — **Ruling requested:** SUSTAIN (foundation / 2^o evidence re PSA conveyance) — **Proposed remedy:** Strike.

19. Obj. 19 — **Page:line:** p.4, ll.15-18 — **Ruling requested:** SUSTAIN (sham affidavit / contradiction of prior sworn testimony) — **Proposed remedy:** Disregard.

20. Obj. 20 — **Page:line:** p.5, ll.1-3 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

Declaration 10057589 (Meet-and-Confer)

21. Obj. 21 — **Page:line:** p.2, ll.3-5 — **Ruling requested:** SUSTAIN (best / secondary evidence) —
Proposed remedy: Strike.

22. Obj. 22 — **Page:line:** p.2, ll.7-9 — **Ruling requested:** SUSTAIN (legal conclusion) —
Proposed remedy: Strike.

1 23. Obj. 23 — **Page:line:** p.3, ll.1-3 — **Ruling requested:** SUSTAIN (improper argument) —
2 **Proposed remedy:** Disregard.

3 24. Obj. 24 — **Page:line:** Throughout — **Ruling requested:** SUSTAIN (non-compliance with
4 CCP § 2015.5) — **Proposed remedy:** Disregard in full.

5 _____
6 **DATED:** April 16, 2026

7 Respectfully submitted,
8 _____

9 FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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Franciscus Dylan Rosario,
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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**DECLARATION AND REQUEST FOR
JUDICIAL NOTICE IN SUPPORT OF
OPPOSITIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. PERSONAL KNOWLEDGE AND COMPETENCY

1. I am the Plaintiff in the above-entitled action. I am over the age of 18 years and am competent to testify to the matters set forth herein. I have personal knowledge of the facts stated in this declaration, except where stated on information and belief, and if called as a witness, I could and would competently testify thereto.
2. I make this declaration in support of my Oppositions to Defendants' Demurrer and Special Motion to Strike (Anti-SLAPP).

I-A. THE "SMOKING-GUN" PREAMBLE — WHAT THIS CASE IS NOW ABOUT

3. This case is about a fraud on the integrity of the judicial process. At the center of this action is a series of categorical denials of receipt of critical evidence (911/BWC CDs) by defense counsel acting as officers of the court. These denials were representations of fact upon which the Court explicitly and repeatedly relied to strip me of my ability to present my case.
4. On February 28, 2025, the Court articulated its reliance on these representations: > "I'm not going to question a lawyer's remarks regarding what they have and don't have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven't heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly." > (Hr'g Tr. Feb. 28, 2025, pp. 291:26–292:7.)
5. Based on that "credibility" and reliance, the Court issued a series of structural rulings against me, including excluding the 911 CDs (Jan. 27, p. 38:22–25), denying a continuance to address the surprise (Feb. 18, p. 181), and shifting the burden to me to disprove the defense's non-receipt claim (Feb. 28, p. 293:1–3).
6. On April 16, 2025, after months of categorical denials, defense counsel admitted the representations were false: > "Sure. They were provided by Dolan. He has had them for whatever, sure." > (RT 7, p. 213, ll. 13–15.)

I-B. THE NINE-POINT EVIDENTIARY CHAIN OF DEFENSE RECEIPT

7. The denials of receipt were irreconcilable with a two-year record of notice and possession, of which I have personal knowledge and/or which is reflected in the certified record:

1. **Aug. 18, 2022 — Service of 911 audio by Dolan to defense counsel.** My personal knowledge / record basis: I witnessed the service and/or reviewed the proof of service.
2. **Aug. 18, 2022 — My deposition — Mr. Chambers present.** My personal knowledge / record basis: I testified about the 911 audio in Mr. Chambers' presence.
3. **Sept. 30, 2022 — Mr. Abdelhalim deposition — Mr. Chambers present.** My personal knowledge / record basis: I attended the deposition; 911-related testimony was given.
4. **May 4, 2023 — Substitution of Attorney (CSK → PSA).** My personal knowledge / record basis: I received the Substitution of Attorney filing.
5. **Feb. 1, 2024 — PSA subpoena for identical materials.** My personal knowledge / record basis: I received notice of the subpoena for the same 911 records.
6. **Feb. 26, 2024 — PSA receives production from SFPD.** My personal knowledge / record basis: I observed references to this production in discovery.
7. **Sept. 9, 2024 — My FROG/SROG served on PSA identifying CAD log.** My personal knowledge / record basis: I personally served these discovery responses on Mr. Reyna.
8. **Feb. 18, 2025 — Jeremy Jessup confirms Dolan copy since 2021.** My personal knowledge / record basis: I was present in court when Mr. Jessup so testified.
9. **Apr. 16, 2025 — ADMISSION OF RECEIPT.** My personal knowledge / record basis: I was present in court for the RT 7, 213:13-15 admission.

II. DEFENDANTS' LITIGATION POSTURE

A. Defendants Treat the Underlying Acts As Having Occurred and Contend They Are Legally Protected

3. In their Demurrer Memorandum of Points and Authorities (Clerk File No. 10157174), Defendants acknowledge the file transfer at issue:

“On May 4, 2023, Defendant CHAMBERS [and CARBONE] transferred the defense file to PSA pursuant to the Substitution of Attorney ... without ensuring proper documentation and conveyance of the production history to successor counsel.”

4. In their Anti-SLAPP Memorandum of Points and Authorities (Clerk File No. 10152305), Defendants further state:

“All the alleged conduct occurred squarely within the judicial proceeding.”
5. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization. I do not represent that Defendants have admitted fraud or wrongdoing; I state only that their motions proceed as though the pleaded allegations were true and assert only legal immunity.
6. Reserved.

III. OUT-OF-COURT REPRESENTATIONS (PHASE ONE)

A. Communications Inducing Reliance — Speaker, Date Range, and Supporting Document

7. During the course of the underlying litigation in Case No. **CGC-21-594102**, I received written and oral communications from defense counsel concerning the status and authentication of 911 audio and CAD records. The communications and course of conduct I rely on were led by **Michael R. Chambers** and other attorneys associated with **Carbone, Smith & Koyama LLP** between approximately **August 2022** and **May 4, 2023** (through substitution of counsel). Defendant **Michael R. Chambers** is sued in his individual capacity as alleged in the First Amended Complaint.
8. I principally relied on the **cumulative course of defense conduct** during that window: service of the 911 audio and related materials in **August–September 2022** (including on or about **August 18, 2022**); my **August 18, 2022** deposition and defendant Abdelhalim’s **September 30, 2022** deposition (911-related examination, with Mr. Chambers present); and the **absence of any motion to compel or formal written discovery objection** challenging authenticity or provenance of those materials from service through **January 17, 2025**, as more fully alleged in the First Amended Complaint in this action ¶¶**26–33**. Representative excerpts from the

September 30, 2022 deposition transcript (911-related lines) and references from the **underlying register of actions / clerk’s transcript** (including meet-and-confer materials indexed at **CT Vol. 1, p. 66**) are attached hereto as **Exhibit A** (composite). In substance, that course of conduct led me to understand authentication and provenance of the 911 audio and CAD records were **not actively contested in writing** during the pretrial window when I could still have sequenced custodian and authentication motions without the compressed trial posture that followed.

9. These matters arose outside the courtroom, in the context of discovery production, deposition examination, and meet-and-confer practice, and not on the record before the Court. To the extent any additional communications bearing on this subject exist in the underlying court file or counsel files, they will be identified by date, author, and Bates/file reference in a supplemental declaration if obtained.
10. In direct reliance on the course of conduct identified in Paragraphs 7–9, I did not pursue specific procedural steps — including issuance of subpoenas to **SFPD records custodians / CAD index witnesses** and a noticed motion to authenticate and admit the 911 audio and CAD records under Evidence Code § 1400 et seq. before **January 17, 2025** (when successor counsel filed Motions in Limine Nos. 1–19) — that I would have pursued earlier had defense counsel’s out-of-court posture matched the “**unknown provenance**” / “**not produced**” position later taken before the Court.

IV. COURT-FACING REPRESENTATIONS (PHASE TWO)

A. Shift in Position on the Record

11. After the windows to subpoena, authenticate, or properly sequence the 911 audio and CAD records had narrowed or closed, Defendants (directly and through successor counsel relying on the file as transferred) took a materially different position before the Court concerning non-receipt, unknown provenance, or exclusion of those materials.
12. The specific court-facing statements I rely on appear in the **February 18, 2025 pretrial hearing** transcript, including **pp. 139–141** (Jeremy Jessup testimony; Priya Navaratnasingham’s

“news to me” response and representation that her office “**did not receive the 911 call until the day of the MSC**”), and in **Motions in Limine Nos. 6 and 17** filed **January 17, 2025** in Case No. CGC-21-594102 (**Clerk’s Transcript Vol. 1, pp. 149–151; p. 238**). I also rely on **April 16, 2025** trial testimony (**Reporter’s Transcript vol. 7, p. 213, ll. 13–15**) where defense counsel admitted the materials “**were provided by Dolan.**” A true and correct copy of the **February 18, 2025** hearing transcript excerpts and the **January 17, 2025** MIL pages described above is attached hereto as **Exhibit C** (composite).

13. The Court relied on the representations identified in Paragraph 12 in making procedural rulings, including **denial of my continuance requests** at the **February 18, 2025** hearing and **deferral / limitation rulings** on the 911 audio and supplemental police materials during the **April 2025** trial, as reflected in the reporter’s transcripts and minute orders for Case No. CGC-21-594102.
14. The court-facing position identified in Paragraph 12 was inconsistent with the out-of-court position identified in Paragraphs 7–9 and with the production history I personally observed during the underlying litigation, including **service of CAD identifiers on successor counsel on September 9, 2024**, without written objection (**First Amended Complaint ¶28**).

V. FILE TRANSFER AND PRODUCTION HISTORY

A. The Substitution of Attorney

15. On May 4, 2023, a Substitution of Attorney (**Transaction ID #69953800**) was filed in the underlying action, substituting successor counsel (Phillips, Spallas & Angstadt LLP) for Defendants Carbone, Smith & Koyama LLP and Michael R. Chambers. A true and correct copy of the filed Substitution of Attorney is attached hereto as **Exhibit B**.
16. Based on my review of the filings, correspondence, and successor counsel’s court-facing statements identified in Paragraph 12, the transfer of the defense file to successor counsel did not include a complete and accurate production history.
17. Specifically, documentation showing what materials had been produced by or to the defense, when, and in what format — information that would have permitted successor counsel to

accurately represent the production history to the Court — was either not conveyed or not conveyed in usable form. To the extent the precise contents of the file transfer are within Defendants’ exclusive knowledge, that subject is identified here on information and belief and will be particularized through **underlying-file exhibits, transmittal letters, and any file-index or cover memo** obtained in discovery.

VI. STRUCTURAL HEARING IMPAIRMENT (KULCHAR TWO-STEP)

A. What Was Concealed

18. The matters concealed or not conveyed, to my knowledge, consist of: (a) the out-of-court position taken by prior defense counsel that authentication of the 911 audio and CAD records was not contested for purposes of the then-applicable deadlines (Paragraphs 7–9); and (b) the complete production history of those materials at the time of substitution (Paragraphs 16–17).

B. What Plaintiff Would Have Done Differently (Reliance Link)

19. Absent the concealment described in Paragraph 18, I would have (a) issued subpoenas to **SFPD records custodians and CAD index witnesses by no later than the final pretrial conference window in January 2025**; (b) filed a noticed motion to authenticate and admit the 911 audio and CAD records pursuant to Evidence Code § 1400 et seq. on **notice and briefing timed to precede the January 17, 2025** motions in limine and related pretrial orders; (c) sought a continuance specifically to cure any provenance dispute before the trial window closed; and (d) placed on the record, before the relevant rulings described in Paragraph 13, the production history and course of conduct identified in Paragraphs 7–9.

C. Resulting Impairment

20. Because I was induced to treat those evidentiary issues as not in dispute and because the production history was not accurately before the Court at the time of the court-facing shift, the procedural windows for authentication and sequencing closed before I could take the steps identified in Paragraph 19. The result was a process-level impairment of my ability to present the 911 audio and CAD records in proper form — not a complaint about how a jury weighed evidence actually admitted.

VII. CSAA AS INSTITUTIONAL PRINCIPAL

A. Agency Facts Within Personal Knowledge

21. Based on correspondence I received and on defense-side filings in the underlying action, CSAA Insurance Exchange funded and controlled the defense of its insured in the underlying action, including retention of Carbone, Smith & Koyama LLP and successor counsel. The specific claim number, assigned adjuster, and coverage correspondence I rely on are identified in the **First Amended Complaint ¶49** (claim number **1004-09-1054**; policy number **CAAS100310857**; February 25, 2021 denial correspondence).
22. To the extent specific acts of direction, approval, or ratification by CSAA are within CSAA's exclusive institutional knowledge, those facts are alleged on information and belief and will be particularized through discovery; representative items include **panel-counsel billing instructions, substitution-approval correspondence, reservation-of-rights or coverage correspondence, and claim-file notes** as described in **First Amended Complaint ¶¶50–51, 57**.
23. The conduct alleged in the First Amended Complaint occurred in the course of the agency relationship described in Paragraphs 21–22 and for the benefit of CSAA as institutional principal.

VIII. DISCOVERY CLOSURE AND TRIAL STRUCTURE

24. The specific procedural windows that closed, and on which the structural impairment described in Section VI depends, are:
 - a. **Continuance denied:** My continuance requests made at the **February 18, 2025** pretrial hearing were denied by the Court the same day, as reflected in the **February 18, 2025** hearing transcript and related minute orders in Case No. CGC-21-594102.
 - b. **Evidentiary ruling:** Rulings **deferring admission of the 911 audio** and **limiting the supplemental police report** were entered during the **April 16–17, 2025** trial days, including on the reporter's transcript volumes cited in the **First Amended Complaint ¶46** (e.g., **RT 7** passages described therein).

- c. **Discovery cutoff / authentication window:** The **pretrial and discovery cutoff orders** entered in the register of actions for Case No. **CGC-21-594102** closed the window in which I could, as of right, have completed the subpoena and authentication sequence described in Paragraph 19 after the **January 17, 2025** motions in limine and the **February–April 2025** pretrial and trial schedule.
-

IX. CHRONOLOGY

25. The following chronology summarizes the sequence on which this declaration depends. Each step is supported by the paragraph(s) cross-referenced below:
1. **What was produced and when.** The 911 audio and CAD records, and related production, were exchanged in **August–September 2022**, including service of the 911 audio on or about **August 18, 2022**, as reflected in the **First Amended Complaint ¶26** and the proof-of-service and production references in the **underlying court file** (to be copied into Exhibit A). (See ¶¶ 14, 16.)
 2. **Pretrial representations.** Defense counsel’s out-of-court posture regarding authentication and provenance is reflected in the course of conduct from **August 2022** through **May 4, 2023**, including the materials attached as Exhibit A. (See ¶¶ 7–9.)
 3. **Substitution.** The Substitution of Attorney was filed on May 4, 2023 (Exhibit B). (See ¶ 15.)
 4. **Production-history information not conveyed.** At or after substitution, the complete production history described in Paragraph 17 was not conveyed in usable form to successor counsel. (See ¶¶ 16–17.)
 5. **What successor counsel told the Court.** Successor counsel’s court-facing statements regarding non-receipt, unknown provenance, or exclusion appear in the **February 18, 2025** hearing transcript (**pp. 139–141**) and in **Motions in Limine Nos. 6 and 17** (Exhibit C). (See ¶ 12.)
 6. **Ruling that followed.** The Court entered the ruling(s) identified in Paragraphs 13 and 24 in reliance on those statements.

7. **Specific lost opportunity.** As a result, the procedural steps identified in Paragraph 19 became unavailable, and the 911 audio and CAD records were not presented in proper form. (See ¶¶ 19–20, 24.)
-

X. PREJUDICE

26. Absent the alleged deception described in Sections III–V, I would have taken each of the procedural steps identified in Paragraph 19 within the applicable windows identified in Paragraph 24, and the 911 audio and CAD records would have been authenticated and presented in proper sequence to the trier of fact. The lost opportunity was not an opportunity to relitigate weight; it was the opportunity to have the process function at all as to those materials.
-

X-A. PLAINTIFF’S CONTEMPORANEOUS PRESERVATION OF THE SUPPRESSION THEME

27. On January 27, 2025, I appeared in Department 301 and stated on the record:

“We have two 911 records that the Defense has been trying to suppress.”

(Hr’g Tr. Jan. 27, 2025, p. 19, ll. 1–5.)

A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit D** (to be supplemented with certified transcript pages). I knew at that moment that the 911 audio, BWC footage, and CAD log had been produced in 2021–2022 because I had reviewed the file my prior counsel delivered in August 2024.

28. On February 18, 2025, I appeared in Department 301 and stated:

“I am going to continue to state it, that I’m absolutely prejudiced. This is going on the record.”

(Hr’g Tr. Feb. 18, 2025, pp. 44–45.)

My intent was to preserve an objection for appeal regarding the Defense’s court-facing denial of receipt. A true and correct copy of the relevant transcript pages is attached hereto as **Exhibit E** (to be supplemented with certified transcript pages).

29. On February 18, 2025, I also stated on the record:

“the information was completely concealed from me. I never received any access to any of the videos or 911 tapes before the moment they had sent me a motion in limine.”

(Hr’g Tr. Feb. 18, 2025, p. 17.)

30. These statements (Paragraphs 27–29) are the Evidence Code § 402 foundation for the transcript excerpts to come in without dispute. I made these statements under oath, on the certified record, contemporaneously with the events described.

X-B. OFFICER-OF-THE-COURT RELIANCE AND COUNT 7 (CONSTRUCTIVE FRAUD)

31. On February 28, 2025, the Court explained that it would not second-guess defense counsel’s representations about what they had and did not have, because counsel are officers of the court (Hr’g Tr. pp. 291:26–292:7). I understood those statements to mean the Court was extending institutional reliance to defense counsel’s possession and provenance narrative. I relied on that same posture in real time when I opposed the burden-shift ruling and the protective-order channel that followed (Hr’g Tr. pp. 291–294).

32. That reliance is the factual predicate for the **duty-of-candor** element of constructive fraud (Civ. Code § 1573) pleaded as Count 7 in the proposed Second Amended Complaint: the tribunal’s articulated trust in counsel’s representations is the mirror image of the nondisclosure and misleading-act pattern the Nine-Point Receipt Chain and the April 16, 2025 admission expose.

XI. DAMAGES AND RELIEF SOUGHT

A. Equitable Vacatur

33. The relief I seek is equitable vacatur of the judgment procured by extrinsic fraud, plus ancillary equitable monetary relief incident to vacatur.

34. I am not seeking to relitigate the negligence issues decided by the jury. I am seeking to set

aside a judgment procured through fraud on the tribunal as described above.

XII. CONCLUSION

35. The facts set forth above describe the two-phase pattern of extrinsic fraud alleged in the First Amended Complaint and, on leave to amend, the proposed Second Amended Complaint: out-of-court representations inducing reliance (Section III), followed by court-facing statements that induced procedural rulings (Section IV), resulting in structural hearing impairment (Section VI) tied to specific closed procedural windows (Section VIII).
36. Defendants treat these alleged acts as having occurred but contend they are legally protected; this opposition disputes that legal characterization.
37. I respectfully request the Court consider this declaration in support of my Oppositions to the Demurrer and Special Motion to Strike.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

FRANCISCUS DYLAN ROSARIO

PART II — REQUEST FOR JUDICIAL NOTICE (COURT RECORDS AND AUTHORITIES)

§I.B — Procedural Request

Pursuant to Evidence Code section 452(d), Plaintiff Franciscus Dylan Rosario respectfully requests the Court take judicial notice of the court records identified in Section III below. These are records of California courts bearing directly on matters at issue on the pending Demurrer and Special Motion to Strike — including the procedural posture of the underlying tort action, rulings entered therein, and Defendants’ own filed appearances.

The purpose of this request is narrow: to place before the Court the undisputed court records

necessary for the Court to resolve the legal propositions actually presented by the motions. Plaintiff does not ask the Court to take judicial notice of the truth of any hearsay within these records, only of their existence, filing, and legal effect.

A separate **Appendix — Index of Authorities with Pin-Cited Omissions** is attached for the Court's convenience. That appendix collects the published California appellate opinions on which the parties' briefing turns, with pin-cites to the passages relevant to the motions. Judicial notice of published California appellate opinions is not required (they are binding authority the Court applies directly); the appendix is provided solely as a reference aid.

II. LEGAL STANDARD

Evidence Code section 452(d) authorizes judicial notice of "[r]ecords of any court of this state."

This request is directed to court records of the underlying tort action and related filings.

To the extent the Court elects to take judicial notice of the existence of any published California appellate opinion listed in the Appendix, the proper statutory hook is Evidence Code section 451(a) (decisional and statutory law of California, which is judicially noticed as a matter of law), not section 452(d).

III. COURT RECORDS FOR WHICH JUDICIAL NOTICE IS REQUESTED (EVID. CODE 452(D))

Item X: Certified Hr'g Tr. January 27, 2025

Document: Certified Hearing Transcript, January 27, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 7–61).

Pincites relied upon: pp. 7 (MIL framing), 15–16 (continuance opposition), 17–22 (Plaintiff's "suppress" objection), 32 (FROG/SROG pin-cites), 34, 41 (MIL ruling), 42, 46, 49 (CCP § 473 denied), 55–60 (continuance denied).

Relevance: Establishes Plaintiff's contemporaneous preservation of the suppression theme and the procedural denials that foreclosed relief. Directly relevant to the intrinsic/extrinsic distinction and

to accrual under CCP § 338(d).

Item Y: Certified Hr’g Tr. January 28, 2025

Document: Certified Hearing Transcript, January 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 85–100).

Pincites relied upon: p. 90, ll. 17–33 (defense § 581(d) dismissal motion; Court’s “immediate reversal” remark).

Relevance: Establishes defense’s second-day dismissal attempt while Plaintiff was medically incapacitated.

Item Z: Certified Hr’g Tr. February 3, 2025

Document: Certified Hearing Transcript, February 3, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 105–130).

Pincites relied upon: p. 109, ll. 21–23; p. 116, ll. 9–16; pp. 122–124 (renewed § 581(d) under submission; ex parte disclosure-order condition).

Relevance: Currently missing from the RJN package. This hearing is critical because it shows defense maintained termination leverage across **two hearings** during the preservation window.

Item AA: Certified Hr’g Tr. February 18, 2025

Document: Certified Hearing Transcript, February 18, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 135–210).

Pincites relied upon: pp. 17 (concealed), 23 (stonewalling), 44–45 (going on the record), 139–141 (Jessup testimony; “news to me”), 145 (SFPD direct links), 147, 151, 164 (continuance requests), 181 (continuance denied; “since August” admission).

Relevance: The Feb. 18 hearing contains both Position A (p. 141) and Position B (p. 181) in the same transcript, by the same attorney—establishing scienter for judicial estoppel and the Flatley illegal-conduct exception.

Item BB: Certified Hr’g Tr. February 28, 2025

Document: Certified Hearing Transcript, February 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 290–310).

Pincites relied upon: pp. 290–294 (officer-of-court ruling at p. 291, ll. 26–28 and p. 292, ll. 1–7; burden-shift ruling at p. 293, ll. 1–3).

Relevance: The February 28, 2025 ruling is a Tier-1 “smoking gun” excerpt. The Court expressly stated: (i) “I’m not going to question a lawyer’s remarks regarding what they have and don’t have” (p. 291:26–28); (ii) “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court” (p. 292:1–4); and (iii) imposed a burden-shift on Plaintiff: “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (p. 293:1–3). These statements memorialize the tribunal’s institutional reliance on defense candor — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15), was misplaced.

IMPORTANT — Disclaimer under Evid. Code § 452(d): Notice is requested only for the making of the statements by the Court (a court-record fact), not for the truth of any underlying assertion about defense counsel’s conduct — that truth question is the very issue this equitable action adjudicates.

Exhibit 1: Reliance-and-Rulings Chain Exhibit

Document: The “Reliance Chain Exhibit” (see **Bench Binder App. 2**) documenting the four-hearing reliance arc and the structural rulings procured. **Relevance:** Establishes the “fruit” of the misrepresentation. Directly relevant to the “Reliance → Rulings → Admission → Falsity” sequence.

Exhibit 2: Plaintiff Preservation Chronology

Document: The “Plaintiff Preservation Chronology” (see **Bench Binder App. 5**). **Relevance:** Proves Plaintiff objected contemporaneously to every misrepresentation, preempting “sleeping on rights” arguments.

Exhibit 3: Judicial Admission Matrix

Document: The “Judicial Admission Matrix” (see **Bench Binder App. 3**). **Relevance:** Makes the inconsistency → reliance → ruling → admission chain visible in a single matrix row.

Exhibit 4: Brief Re: Fraud on the Court

Document: Plaintiff’s consolidated Brief Re: Fraud on the Court; Estoppel; and Exhibit-by-Exhibit Estoppel Record (filed concurrently with these oppositions). **Relevance:** Comprehensive doctrinal and record analysis of the 900-day deception.

Exhibit 5: Fraud-on-Court Roadmap (Bench Handout)

Document: The one-page roadmap (see **Bench Binder App. 6**). **Relevance:** Four-quadrant summary for use at the bench.

Exhibit 6: Substitution of Attorney — Underlying Tort Action

Document: Substitution of Attorney filed May 4, 2023. **Relevance:** Establishes the file-transfer event and substitution of PSA for CSK.

Exhibit 7: Minute Orders — Continuance Denials and Evidentiary Rulings

Document: Filed minute orders from the underlying tort action. **Relevance:** Direct evidence of the procedural consequences of the fraud.

Exhibit 8: Notice of Appeal — Underlying Tort Action

Document: Notice of Appeal filed in the underlying action. **Relevance:** Establishes the distinct procedural path of the underlying liability.

IV. AUTHORITIES SUMMARY (REFERENCE ONLY — SEE APPENDIX)

The following summarizes, for the Court’s convenience, the authorities briefed in the oppositions and the pin-cited passages on which Plaintiff relies as compared with the passages Defendants quote. The Appendix contains full pin-cited opinions.

- **Park v. Bd. of Trustees (2017) 2 Cal.5th 1057** — Defendants cite p. 1064 (quoted phrase); Plaintiff cites pp. 1062–1064. **Legal proposition:** Step-one gravamen filter; isolating injury-producing act.
- **Flatley v. Mauro (2006) 39 Cal.4th 299** — Defendants cite p. 322 (finality); Plaintiff cites

pp. 320–325. **Legal proposition:** Illegal-conduct exception to Anti-SLAPP.

- **Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287** — Defendants [implicit immunity]; Plaintiff cites p. 305. **Legal proposition:** Preservation of common law fraud against insurers.
- **Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232** — Defendants [not cited]; Plaintiff cites pp. 1242–1247. **Legal proposition:** Extrinsic fraud boundary of Civ. Code § 47(b).
- **Kimmel v. Goland (1990) 51 Cal.3d 202** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Communications vs. noncommunicative conduct.
- **Crowley v. Katleman (1994) 8 Cal.4th 666** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Primary rights analysis for collateral estoppel.

V. CONCLUSION

Plaintiff respectfully requests the Court take judicial notice under Evidence Code section 452(d) of the court records identified in Section III, and consult the attached Appendix as a reference aid for the published authorities addressed in the oppositions.

DATED: April 16, 2026

PART III — REQUEST FOR JUDICIAL NOTICE (CERTIFIED HEARING TRANSCRIPTS) — FOLDED INTO RJN PACKAGE

I. RELIEF REQUESTED

Plaintiff requests that the Court take **judicial notice** under **Evid. Code § 452(d)** (official acts of a public entity), **§ 453** (proceedings of a court of record), and **Cal. Rules of Court, rule 3.1306(c)** (reporter’s transcript of proceedings in the same case), of the **certified reporter’s transcripts** of the following hearings in Rosario v. Abdelhalim, CGC-21-594102 (and related register entries as appropriate):

1. **January 27, 2025** hearing transcript (excerpts cited in SAC Exhibit K).

2. **January 28, 2025** hearing transcript (SAC Exhibit L).
3. **February 18, 2025** hearing before the Garrett L. Wong (Sandra L. Carranza, CSR 7062) (SAC Exhibits C and M).
4. **February 28, 2025** hearing transcript (SAC Exhibit N).

II. SOURCE DOCUMENTS (DECLARATION ATTACHMENT LIST)

Declarant will identify the **certified reporter's transcripts** for the hearings listed in Section I, including the same materials designated among the transcript excerpts in Plaintiff's Second Amended Complaint Exhibit Appendix (Exhibits K, L, C, M, N, O, P, and Q, as applicable). True and correct copies will be attached to any declaration filed in support of this request; conformed or clerk-certified copies may be lodged with the Court on order.

III. COVER SHEET: PAGE AND LINE CITES USED IN SAC AND COMPANION DRAFTS

Topic	Citation	Used in
MIL framing	Hr'g Tr. Jan. 27, 2025, p. 7, ll. 10–14	SAC ¶¶40; Exhibit K
Continuance opposition / 883-day denial	Jan. 27, pp. 15, 57	SAC ¶¶41, 112(b); Exhibit K
Navaratnasingham hearing statements	Jan. 27, pp. 16, 19	SAC ¶126(c)–(d); Exhibit K
CCP § 581(d) dismissal motion	Jan. 28, p. 90, ll. 17–33	SAC ¶40(c); Exhibit L
2021 transmission / production	Feb. 18, p. 139, l. 11	SAC ¶¶26, 68; Exhibit M

Topic	Citation	Used in
Jessup production quotes	Feb. 18, pp. 140–141	SAC ¶¶42; Appendix 10; Exhibit M
MSC-date / “news to me”	Feb. 18, p. 141, ll. 4–11	SAC ¶¶43; Exhibit C/M
Service on prior firm	Feb. 18, p. 141, ll. 18–23	Appendix 10; Exhibit M
SFPD direct BWC links	Feb. 18, p. 145, ll. 4–18	Brief 09 §III.A; Appendix 10; Exhibit M
Continuance requests	Feb. 18, pp. 147, 151, 164	SAC ¶¶47(a); Exhibit M
Position-B possession / oppose continuance	Feb. 18, p. 181, ll. 6–23	SAC ¶¶88, 112(b); Exhibit M
Protective-order posture	Feb. 28, pp. 296–307	SAC ¶¶47(f); Exhibit N
Trial Day 7 sequence	RT 7 (multiple lines)	SAC ¶¶58–63, 99; Exhibit O
Trial Day 8 / read-back	RT 8, PG 12–14, 1958–1959, pp. 1990–1993	SAC ¶¶46–47; Exhibit P
Closing argument	RT 10, pp. 1011–1012	SAC ¶¶45, 112(b); Exhibit Q

IV. DECLARATION SHELL (TEXT FOR PROPOSED DECLARANT)

1. I am a person with knowledge of the facts stated herein / I am Plaintiff / I am counsel of record [select one].
2. Attached as Exhibit [...] are true and correct copies of [certified hearing transcript PDFs] for the hearings listed in Section I.
3. The page and line citations in the cover sheet (Section III) match the pagination of the attached certified transcripts.
4. I will lodge conformed or clerk-certified copies of the reporter’s transcripts with the Court on order, consistent with the Court’s rules and any direction from the Court.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on April 16, 2026, at San Francisco, California.

Declarant

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO,

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

Dated: April 18, 2026



FRANCISCUS DYLAN ROSARIO
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